

IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT DHARWAD

PRESENTATION FORM

WRIT APPEAL NO. 100531 of 2023

District: Belagavi

PRESENTED WITH COURT FEE LABELS AS FOLLOWS

Sl. NO.	Particulars	Court fee affixed on the papers	
		Rs.	P.
1.	On Memorandum of Appeal/Petition Application ...		
2.	On the certified copies of judgment and decree ...		
3.	Memo of Appearance ...	50	00
4.	I.A. No.1/2023 for ...		
5.			
6.			
7.	 Total ...	50	00

Number of copies furnished 2 Sets

Advocate for Petitioner/ Respondent Appellant

Clerk
Office of the Advocate-General
For Karnataka, Dharwad

Received Court fee and Stamp
Labels as above

Place: Dharwad
Dated: 30.08.2023

Receiving Clerk

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2023

IN

WRIT PETITION NO.100462/2022(KLR-LG)

BETWEEN:

The State of Karnataka,
Rep. by its Prl. Secretary,
Revenue Department,
And others.

Appellants

AND

Subhas
S/o. Anna Saheb Pol.

Respondent

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Place:Dharwad
Dated:30.08.2023

(V.S.KALASURMATH)
HIGH COURT GOVT. PLEADER
AND
ADVOCATE FOR APPELLANTS/STATE

THE HIGH COURT OF KARNATAKA DHARWAD
BENCH AT DHARWAD

WRIT APPEAL No. _____/2023

BETWEEN:

The State of Karnataka
and others.

APPELLANTS

AND

Subhas S/o Anna Saheb Pol.

RESPONDENT

LIST OF DATES AND SYNOPSIS

Sl. No.	Date	Particulars
1.	24.08.2014	The Petitioner made application to the Respondent No.2 seeking grant of land in question in his favour through Proper Channel.
2.	13.05.2017	The Petitioner herein again made application to Respondent No.4 requesting to grant land in her favour.
3.	26.12.2017	Being aggrieved by the in action on behalf of appellants, the Respondents herein approached this Hon'ble Court by filing in W.P.No.100462/2022.

4.	24.02.2023	After appreciation of the fact on behalf of both the Appellants of as well as Respondent the Hon'ble learned single Judge was pleased to allow the petition directing the Appellant No.2 to grant land either in RS.No.190 of Savadatti village and Sy.No.73 and 67 of Nasalapur village Raibag Taluk.
10.	.08.2023	Being aggrieved by the said order passed by the Learned Single Judge in Writ Petition No.100462/2022, the appellants herein have filed the above appeal.

SUBJECT IN BRIEF

That the Petitioner is an ex-servicemen who has rendered service in Indian Army and being a land less soldier made an application dated 24.08.2014 to the 2nd Respondent seeking grant of land and inview of the non consideration of the same has made another correspondence seeking the same relief on 13.08.2017. Inview of the non consideration of the claim, the Respondent approach this Hon'ble Court seeks writ of mandamus for grant of 5 Acres of land in RS.No.190 of Savadatti village, Raibag Taluk and sought for other consequently relief in

W.P.No.100462/2022. After issuance of notice to the appellants herein inspite of having filed a detailed Statement of Objections and denying the claim of the Respondent and sought for dismissal of the petition. But however the learned Single after appreciating the facts was pleased to allow the petition directing the 2nd Respondent to grant land either in RS.No.190 of Savadatti or in Sy.No.73 and 67 of Nasalapur village and also made an observation that, the conduct of the Appellants No.2 in passing an order to re-classifying the land during the pendency of the Writ Petition is a clear attempt to ensure that ex-servicemen who had served the country are denied their statutory entitlement for grant of land and imposed the cost of Rs.25,000/- to be paid to the Respondent by order dated 24.02.2023. The appellants aggrieved by the order passed by the Learned Single Judge have left with no other alternative and efficacious remedy has approached this Hon'ble Court by filing present Writ Appeal.

Place : Dharwad
Date : .08.2023

(V.S. KALASURMATH)
High Court Govt. Pleader
Advocate for the Appellants

**IN THE HIGH COURT OF KARNATAKA DHARWAD
BENCH AT DHARWAD**

(CIVIL APPELLATE JURISDICTION)

WRIT APPEAL No. 100531 /2023

IN

W.P. No.100462/2022

RANK OF THE PARTIES IN

**WRIT
PETITION**

**WRIT
APPEAL**

BETWEEN:

1. The State of Karnataka,
To the Department of Revenue,
Land Grant-3, Vidhana Soudha,
Bengaluru-560001,
Represented by Its Principal Secretary.

**Respondent
No.1**

**Appellant
No.1**

2. The Deputy Commissioner,
Belagavi District,
Belagavi-590001.

**Respondent
No.2**

**Appellant
No.2**

3. The Assistant Commissioner,
Chikodi Sub-Division,
Chikodi-591201,
Taluk Chikodi, Belagavi District. - 591 201

**Respondent
No.3**

**Appellant
No.3**

4. The Tahasildar,
Raibag Taluk,
Raibgag- 591217,
Belagavi District.

**Respondent
No.4**

**Appellant
No.4**

AND:

Subhas S/o Anna Saheb Pol,
Aged About 45 Years,
Occ: Ex-Servicemen,
R/o: Near Bus Stand,
Chinchali-591217,
Raibag Taluk,
Belagavi District.

Petitioner / Respondent

**MEMORANDUM OF WRIT APPEAL UNDER SECTION
4 OF THE KARNATAKA HIGH COURT ACT-1961**

The Appellants above named most respectfully submits as follows:-

I. The addresses of the Appellants for the purposes of service of Court Notices, Processes, Summons etc., from this Hon'ble Court is that of their Counsel, the High Court Government Advocate, Office of the Advocate General, High Court Building, Dharwad.

II. The Address of the Respondents for the aforesaid purposes is as stated in the above cause title.

III. Being aggrieved by the order dated 24.02.2023, passed by the Learned Single Judge, High Court of Karnataka, Dharwad Bench, Dharwad in Writ Petition No.100462/2022 (KLR-LG) pleased to prefer this Writ Appeal on the following amongst facts and grounds.

I. FACTS OF THE CASE

1. That the Petitioner is an ex-servicemen who has rendered service in Indian Army and being a land less soldier made an application dated 24.08.2014 to the 2nd Respondent seeking grant of land and inview of the non consideration of the same has made another correspondence seeking the same relief on 13.08.2017. Inview of the non consideration of the claim, the Respondent approach this Hon'ble Court seeks writ of mandamus for grant of 5 Acres of land in RS.No.190 of Savadatti village, Raibag Taluk and sought for other consequently relief in W.P.No.100462/2022. After issuance of notice to the appellants herein inspite of having filed a detailed Statement of Objections and denying the claim of the Respondent and sought for dismissal of the petition. But however the learned Single after appreciating the facts was pleased to allow the petition directing

the 2nd Respondent to grant land either in RS.No.190 of Savadatti or in Sy.No.73 and 67 of Nasalapur village and also made an observation that, the conduct of the Appellants No.2 in passing an order to re-classifying the land during the pendency of the Writ Petition is a clear attempt to ensure that ex-servicemen who had served the country are denied their statutory entitlement for grant of land and imposed the cost of Rs.25,000/- to be paid to the Respondent by order dated 24.02.2023. The appellants aggrieved by the order passed by the Learned Single Judge have left with no other alternative and efficacious remedy has approached this Hon'ble Court by filing present Writ Appeal.

2. The Appellants have not filed any other petition, application before any other forum or Court of Law and no such application or petition is pending before Hon'ble Court on the same cause of action.

II. GROUNDS

3. The impugned judgment passed by the Hon'ble Learned Single Judge is contrary to the law and facts of the case and against the principles of natural justice.

4. The order passed by the Learned Single Judge is liable to be set aside on the ground that, it is against the provisions of articles 300 of Indian Constitution.

5. It is respectfully submitted that, the order passed by the Learned Single Judge is illegal, arbitrary and contrary to law and facts of the case is concerned, the Learned Single Judge has failed to appreciate the fact and document produced along with the statement of objections filed on behalf of the appellants that the contention was taken that as the above stated Survey numbers were initially to be "Gayarana" lands from 1945 to 1956-1957 and which can be evidenced by hand written pahani. Since from 05.08.1957 these lands were made available to the Gram Panchayth for utilization and were not utilized, on this basis an order came to be passed on 31.05.1959, holding these lands were "sarkari pada" since from 1959 and having that restored as "Gayarana" in so far as Sy.Nos.67, 68 and 73 are concerned and in so far as Sy.No.74 and 81 were not reclassified as "Gayarana". Since from 1961 till 2021 for more than 60 years "lands which were not considered" for land of "Gayarana" by

order dated 21.10.2021 has restored the status of the land as "Gayarana" lands. The said order has not been challenged as on today by any of the persons. In view of the above fact and nature of the order passed which has reached finality has been totally ignored by the learned Single Judge while allowing the writ petition hence the same requires interference by this Hon'ble Court.

6. It is respectfully submitted that, the order passed by the Learned Single Judge is illegal, arbitrary and contrary to law on the fact that, the Learned Single Judge Court has not considered the fact that the initially these lands having been classified and "Gayarana" as Revenue Records as on today indicate that the lands are classified as "Sarkari Pada" it is to be taken into contention that reservation of land or assignment of a land for a particular purpose will have to be done in accordance with the provisions prescribed under the land Revenue Act and in the absence of any notification reserving the land for specific purpose has contemplated under Section 97 of the Karnataka Revenue Act. However it was specifically contended on behalf of Appellant/ State that in view of the amendment of the Rules an ex-servicemen would be entitled for allotment of site if the lands

are not available which was brought into effect on 27.10.2021 and the Respondents could be applicable for filing an application and would be entitled for grant of lands that would be considered as per the rules prevailing as on date of filing of the application. This aspects of the fact has not been properly appreciated by the learned single Judge while allowing the Writ petition. Hence the same requires interference by this Hon'ble Court.

7. Viewed from any angle the order under challenged cannot be sustained either in law nor on the facts of the case, as such is liable to be set aside limine.

8. The appellants reserve the right to urge such other additional grounds which may be available to the appellants at the time of arguments.

III.

PRAYER

WHEREFORE, the Appellants-State prays that this Hon'ble Court may be pleased to:

(a) Call for records;

- (b) Quash the Judgment dated 24.02.2023 passed by the learned Single Judge in W.P. No.100462/2022 (KLR-LG);

AND

- (c) Grant such other reliefs as this Hon'ble Court deems fit in the facts and circumstances of the case, in the interest of justice and equity.

List of Authorities

-Nil-

Place : Dharwad.
Date : .08.2023

(V.S. KALASURMATH)
HIGH COURT GOVT. PLEADER &
ADVOCATE FOR THE APPELLANTS

ASK/26823

765
51 12
1
CR-103805/2023
C.A

**IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH**

DATED THIS THE 24TH DAY OF FEBRUARY, 2023

BEFORE

THE HON'BLE MR.JUSTICE N.S.SANJAY GOWDA

W.P.No.58540/2017 (KLR-LG)

c/w

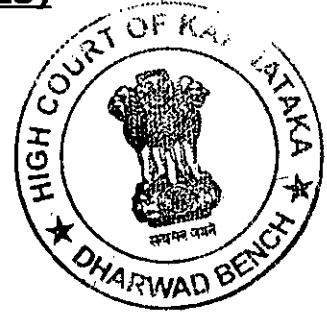
W.P.No.100462/2022 (KLR-LG)

W.P.No.100955/2022 (KLR-RES)

In W.P.No.58540/2017

BETWEEN:

VITHAL HUTTI, S/O MAYAPPA,
AGED ABOUT 29 YEARS,
R/O BEKKERI VILLAGE,
RAIBAG TALUK,
BELAGUAM DISTRICT.



... PETITIONER

(BY SRI.SUMANTH.L.BHARADWAJ, ADVOCATE)

AND:

1. STATE OF KARNATAKA,
REPRESENTED BY ITS PRINCIPAL SECRETARY,
REVENUE DEPARTMENT,
BANGALORE -560 001.
2. THE DEPUTY COMMISSIONER,
BELAGAVI DISTRICT - 590 001.
3. THE ASSISTANT COMMISSIONER,
BELAGAVI DISTRICT - 590 001.

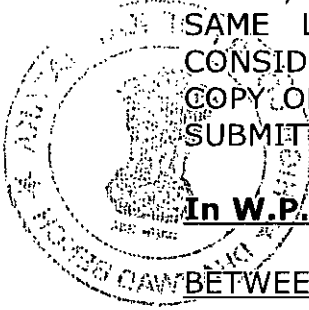


4. THE THASILDHAR,
RAIBAG DISTRICT - 590 001.

... RESPONDENTS

(BY SMT. VIDYAVATHI, ADDITIONAL ADVOCATE GENERAL,
ALONGWITH SRI.SHIVAPRABHU.S.HIREMATH, AGA)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 & 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE WRIT OF MANDAMUS AGAINST THE RESPONDENTS THEREBY DIRECTING THEM TO GRANT 5 ACRES OF LAND IN SURVEY No.222 OF MEKHALI VILLAGE, RAIBAG HOBLI, RAIBAG TALUK, BELAGAVI DISTRICT OR ANY ALTERNATIVE IN THE SAME LOCALITY, IN FAVOUR OF THE PETITIONER BY CONSIDERING THE APPLICATIONS OF THE PETITIONER. THE COPY OF RTC EXTRACTS OF THE SAID LAND IS HEREWITH SUBMITTED AS ANNEXURE-A.



In W.P.No.100462/2022

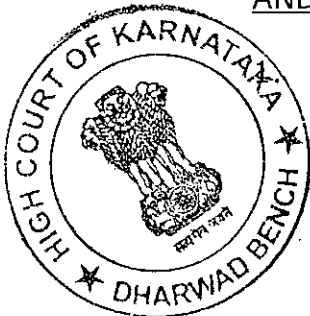
BETWEEN:

SUBHAS, S/O ANNA SAHEB POL,
AGE:44 YEARS,
OCC:EX-SERVICEMEN,
R/O NEAR BUS-STAND,
CHINCHALI - 591 217,
TALUK RAIBAG, DISTRICT BELAGAVI.

... PETITIONER

(BY SRI.SHRIHARSH.A.NEELOPANT, ADVOCATE)

AND:



THE STATE OF KARNATAKA,
TO THE DEPARTMENT OF REVENUE,
LAND GRANT-3,
VIDHANA SOUDHA,
BENGALURU - 560 001.
REPRESENTED BY ITS PRINCIPAL SECRETARY.

2. THE DEPUTY COMMISSIONER,
BELAGAVI DISTRICT,
BELAGAVI - 590 001.
DISTRICT BELAGAVI.
3. THE ASSISTANT COMMISSIONER,
CHIKODI SUB-DIVISION,
CHIKODI - 591 201.
TALUK CHIKODI, DISTRICT BELAGAVI.
4. THE TAHASILDAR,
RAIBAG TALUKA, RAIBAG - 591 317
TALUK RAIBAG, DISTRICT BELAGAVI.

... RESPONDENTS

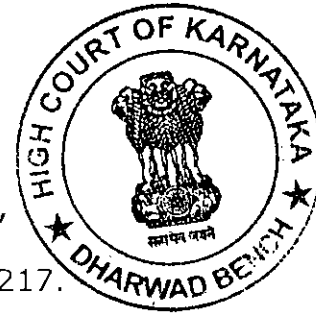
(BY SMT.VIDYAVATHI, ADDITIONAL ADVOCATE GENERAL,
ALONGWITH, SRI.SHIVAPRABHU.S.HIREMATH, AGA)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 & 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OR ORDER OR DIRECTION IN THE NATURE OF WRIT OF MANDAMUS DIRECTING THE RESPONDENTS No.1 AND 4 TO GRANT THE AVAILABLE GOVERNMENT LAND TO THE EXTENT OF 05 HECTARES TO THE PETITIONER IN R.S.No.73 AND 67 OF NASALAPUR VILLAGE, AND R.S.No.190 OF SAVADATTI VILLAGE, OF TALUK RAIBAG DISTRICT BELGAVI BY CONSIDERING THE APPLICATION IN FORM No.1A AND REPRESENTATIONS DATED:04.12.2021 AS PER ANNEXURE-D AND E RESPECTIVELY.

In W.P.No.100955/2022

BETWEEN:

BHARAT, S/O SHRIKANT KURANE,
AGE:51 YEARS, OCC:EX-SERVICEMEN,
R/O AMBEDKAR NAGAR,
NEAR BUS-STAND, CHINCHALI - 591 217.
TALUK RAIBAG, DISTRICT BELAGAVI.



... PETITIONER

(BY SRI.SHRIHARSH.A.NEELOPANT, ADVOCATE)

AND:

1. THE STATE OF KARNATAKA,
TO THE DEPARTMENT OF REVENUE,
LAND GRANT-3,
VIDHAN SOUDHA,
BENGALURU - 560 001.
REPRESENTED BY ITS PRINCIPAL SECRETARY.
2. THE DEPUTY COMMISSIONER,
BELAGAVI DISTRICT.
BELAGAVI - 590 001,
DISTRICT: BELAGAVI.
3. THE ASSISTANT COMMISSIONER,
CHIKODI SUB-DIVISION,
CHIKODI - 591 201,
TALUK CHIKODI, DISTRICT BELAGAVI.
4. THE TAHASILDAR,
RAIBAG TALUKA,
RAIBAG - 591 217,
TALUK RAIBAG, DISTRICT BELAGAVI.

... RESPONDENTS

(BY SMT. VIDYAVATHI, ADDITIONAL ADVOCATE GENERAL
ALONGWITH SRI. SHIVAPRABHU.S.HIREMATH, AGA)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 & 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OR ORDER OR DIRECTION IN THE NATURE OF WRIT OF MANDAMUS DIRECTING THE RESPONDENTS No.1 AND 4 TO GRANT THE AVAILABLE GOVERNMENT LAND TO THE EXTENT OF 2 HECTARES TO THE PETITIONER IN R.S.No.68 OF NASALAPUR VILLAGE, TALUK RAIBAG, DISTRICT BELAGAVI BY CONSIDERING THE APPLICATION IN FORM No.1A AND REPRESENTATION DATE: 24.08.2021 AS PER ANNEXURE-J AND K RESPECTIVELY.



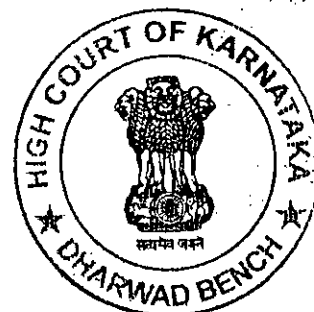
THESE PETITIONS COMING ON FOR ORDERS THROUGH VIDEO CONFERENCING THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

1. In all these writ petitions, it is not in dispute that the petitioners are ex-servicemen, who are seeking for grant of land as provided under the Karnataka Land Grant Rules. It is also not in dispute that the petitioners, by virtue of being ex-servicemen, are entitled for grant of land as per the Rules.

2. It is the case of petitioner that Sy.No.74 of Nasalapur Village and Sy.Nos.72, 76 and 79 of Budihal Village are the lands which are available for grant according to the petitioners.

3. Petitioners contend that in the revenue records pertaining to the above mentioned survey numbers, the lands have been classified as "sarkari pada" and therefore, they are eligible for grant under the Land Grant Rules.



4. It is not in dispute that in the RTC relating to Sy.No.74 of Nasalapur and the RTC relating to Sy.Nos.72, 76 and 79 of Budihal Village, the lands are indeed shown as "sarkari pada".

5. However, the learned Additional Advocate General seeks to contend that these lands were initially "Gayarana" lands i.e., lands reserved for cattle to graze and hence, the same cannot be allotted.

6. On being queried as to the classification in the RTC, learned Additional Advocate General submits that an order has been passed on 21.10.2021 restoring the above lands as "Gayarana" and by virtue of this order of the Deputy Commissioner, the lands cannot be granted. A copy of the order has been produced along with a memo dated 22.03.2022, which reads as follows:

"ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ, ಬೆಳಗಾವಿ ಜಿ: ಬೆಳಗಾವಿ-590 002.

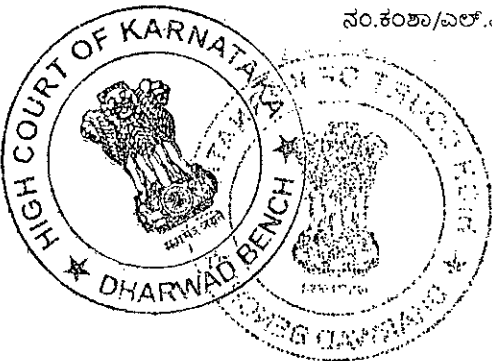
OFFICE OF THE DEPUTY COMMISSIONER, BELAGAVI - 590 002.

Telephone-0831-2406310

Fax-0831-2452644

ನಂ.ಕಂಶಾ/ಎಲ್.ಎನ್.ಡಿ/CR-09/2021-22

ದಿನಾಂಕ:21-10-2021



ವಿಷಯ:

ರಾಯಭಾಗ ತಾಲೂಕಿನ ನಸಲಾಪುರ ಗ್ರಾಮದ
ರಿ.ಸ.ನಂ 74 ಕ್ಷೇತ್ರ 40ಎ-00ಗು ನೇದ್ದನ್ನು
ಗಾಯರಾಣ ಜಮೀನು ಅಂತಾ ಪುನಃ ಸ್ಥಾಪಿಸುವ
ಕುರಿತು

ಓದಲಾಗಿದೆ: 1. ತಹಶೀಲ್ದಾರ ರಾಯಭಾಗ ಇವರ ಪತ್ರ

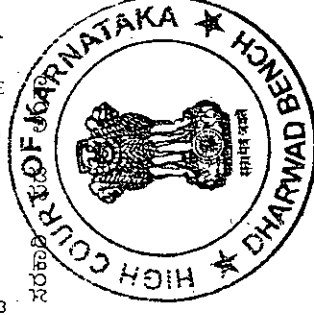
ಸಂಖ್ಯೆ:ಕ್ರ.ಎಲ್.ಎಸ್.ಡಿ/ವಿವ-61/2021-22 ದಿನಾಂಕ:
13-10-2021

2. ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ನಿಯಮಗಳು
1966ರ ನಿಯಮ 97

ಪ್ರಸ್ತಾವನೆ:

ತಹಶೀಲ್ದಾರ ರಾಯಭಾಗ ಇವರು ಓದಿತು(1) ರಡಿ ವದರಿ ಸಲ್ಲಿಸಿ
ರಾಯಭಾಗ ತಾಲೂಕಿನ ನಸಲಾಪುರ ಗ್ರಾಮದ ರಿ.ಸ.ನಂ.74 ಕ್ಷೇತ್ರ 40 ಎಕರೆ
ಸರಕಾರಿ ಪಡೆ ಜಮೀನು ಅಂತಾ ದಾಖಲಾಗಿದ್ದು, ಅದರಂತೆ ನಸಲಾಪುರ ಗ್ರಾಮದ
ರಿ.ಸ.ನಂ 67, 68, 73, 74, 81 ಗಳು ಮೂಲತಃ ಗಾಯರಾಣ ಸ.ನಂ ಆಗಿದ್ದು
1945 ನೇ ಸಾಲಿನಿಂದ 1956-57 ರ ವರೆಗೆ ಗಾಯರಾಣ ಅಂತಾ ಕೈಬರಹ
ಪಹಣಿಯಲ್ಲಿ ದಾಖಲಾಗಿದ್ದು ಇರುತ್ತದೆ. ತದನಂತರ ಸನ್ 57-58 ರಲ್ಲಿ
ಡಾ.ನಂ.3055/05-08-1957 ನೇದರ ಪ್ರಕಾರ ಗ್ರಾಮ ಪಂಚಾಯತ ನಸಲಾಪುರ
ಇವರಿಗೆ ಉಪಯೋಗ ಮಾಡಲು ಆದೇಶ ಮಾಡಿದ್ದು ತದನಂತರ ಗ್ರಾಮ
ಪಂಚಾಯತಿಯವರು ಸದರಿ ಸ.ನಂ ವನ್ನು ಉಪಯೋಗ ಮಾಡಿಕೊಂಡಿರುವುದಿಲ್ಲ.
ಆ ಕಾರಣದಿಂದಾಗಿ ತಹಶೀಲ್ದಾರ ರಾಯಭಾಗ ಇವರು ದಿನಾಂಕ:31-05-1959ರಲ್ಲಿ
ರಿ.ಸ.ನಂ 67, 68, 73, 74, 81 ಗಳು ಸರಕಾರಿ ಪಡೆ ಅಂತಾ ಆದೇಶ
ಮಾಡಿರುತ್ತಾರೆ.

ಮುಂದುವರಿದು, ಡಾ.ನಂ 4364 ದಿ:29-01-1961 ರಂತೆ ಈ ಮೇಲಿನ
ರಿ.ಸ.ನಂ ಪೈಕಿ 67, 68 & 73 ಮಾತ್ರ ಪುನಃ ಗಾಯರಾಣ ಅಂತಾ ದಾಖಲ
ಮಾಡಲಾಗಿದ್ದು ರಿ.ಸ.ನಂ 74 ಮತ್ತು 81 ನೇದು ಗಾಯರಾಣ ಅಂತಾ ದಾಖಲ
ಆಗಿರುವುದಿಲ್ಲ. ರಿ.ಸ.ನಂ 81 ನೇದ್ದು ತೋಟಗಾರಿಕೆ ಇಲಾಖೆಗೆ
ಹಸ್ತಾಂತರಿಸಲಾಗಿರುತ್ತದೆ. ರಿ.ಸ.ನಂ 74 ಮೂಲತಃ ಗಾಯರಾಣ ಅಂತಾ ಇದ್ದು
ಸದರಿ ರಿ.ಸ.ನಂ ಆಕಾರಬಂದ ಪ್ರಕಾರ ಖರಾಬ ಜಮೀನಾಗಿದ್ದು ಯಾವತ್ತೂ
ಸಾಗುವಳಿಯಾಗಿದ್ದು ಇರುವುದಿಲ್ಲ. ಕೆ.ಜೆ.ಪಿಯಾಗಿ ಸಾಗುವಳಿ ಶೀರ್ಷಿಕೆಗೆ ಸೇರಿಸಿ
ಸರ್ವೆ ಸೆಟಲ್ ಮೆಂಟ್ ನಿಂದ ಆಕಾರ ಫಿಕ್ಸ್ ಆಗಿದ್ದು ಕಂಡುಬಂದಿರುವುದಿಲ್ಲ.
ಆದ್ದರಿಂದ ಈ ಜಮೀನು ಪಹಣಿ ಪತ್ರಿಕೆಯಲ್ಲಿ ಸರಕಾರಿ ಕಂಡುಬಂದಿರುವುದಿಲ್ಲ.

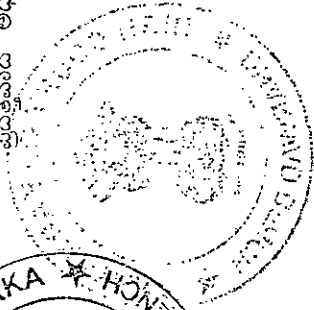


ದಾವಿಲಿಸಲಾಗಿದ್ದರೂ ಆಕಾರಬಂದ ಭೂ ದಾವಿಲೆಗಳ ಪ್ರಕಾರ ಖರಾಬ ಇರುವುದರಿಂದ ಗಾಯರಾಣ ಜಮೀನಾಗಿರುವುದು ಕಂಡುಬರುತ್ತದೆ. ಸ್ಥಳ ಪರಿಶೀಲನೆಯಿಂದ ಈ ಜಮೀನು ಈಗ ಸದ್ಯ ಸದರಿ ರಿ.ಸ.ನಂಬರದಲ್ಲಿ ಗಿಡಗಂಟಿಗಳು ಬೆಳೆದಿದ್ದು ಯಾವುದೇ ರೀತಿ ಸಾರ್ವಜನಿಕರಿಂದ ಅತಿಕ್ರಮಣವಾಗಿರುವುದಿಲ್ಲ. ಈ ಬಗ್ಗೆ ಗ್ರಾಮ ಲೆಕ್ಕಾಧಿಕಾರಿ ನಸಲಾಪೂರ ಮತ್ತು ಗ್ರಾಮ ಪಂಚಾಯತ ಅಭಿವೃದ್ಧಿ ಆಧಿಕಾರಿಗಳು ಇವರೊಂದಿಗೆ ಸ್ಥಳ ವೀಕ್ಷಣೆ ಕೈಗೊಂಡು ಖಾತ್ರಿ ಪಡಿಸಿಕೊಳ್ಳಲಾಗಿರುತ್ತದೆ. ಸದರಿ ರಿ.ಸ.ನಂ ಈ ಮೊದಲಿನಿಂದಲೂ ಮೂಲತಃ ಗಾಯರಾಣ ಇರುವುದರಿಂದ ಹಾಗೂ ಈಗ ಸಹ ಗಿಡಗಂಟಿಗಳು ಬೆಳೆದು ಗೋವುಗಳಿಗೆ ಮೇಯಲು ಯಶಯುಕ್ತವಿದ್ದು ಇದರ ಮೂಲ ಸ್ವರೂಪ ಉಳಿದುಕೊಂಡಿರುತ್ತದೆ. ನಸಲಾಪೂರ ಗ್ರಾಮದಲ್ಲಿ ಒಟ್ಟು 2511 ಜಾನುವಾರುಗಳಿದ್ದು ಸದರಿ ಜಾನುವಾರುಗಳಿಗೆ 753ಎ-12ಗು ಗಾಯರಾಣ ಜಮೀನು ಕಾಯ್ದಿರಿಸಬೇಕಾಗಿರುತ್ತದೆ. ಆದರೆ ನಸಲಾಪೂರ ಗ್ರಾಮದಲ್ಲಿ 109ಎ-38ಗು ಗಾಯರಾಣ ಜಮೀನು ಇದ್ದು 643ಎ-14ಗು ಗಾಯರಾಣ ಜಮೀನಿನ ಕೋರತೆ ಇರುತ್ತದೆ. ಪ್ರಸ್ತಾಪಿತ ಜಮೀನು ಗಾಯರಾಣ ಅಂತಾ ಪುನಃ ಸ್ಥಾಪಿಸುವುದರಿಂದ ನಸಲಾಪೂರ ಗ್ರಾಮದ ಗಾಯರಾಣ ಜಮೀನಿನ ಕೋರತೆ ಸ್ವಲ್ಪ ಮಟ್ಟಿಗೆ ಈಡೇರಿಸಬಹುದಾಗಿದ್ದರಿಂದ ಈಗ ಸರಕಾರಿ ಪಡೆ ಅಂತಾ ಇದ್ದುದನ್ನು ಕಡಿಮೆ ಮಾಡಿ ಗಾಯರಾಣ ಅಂತಾ ಪುನಃ ಸ್ಥಾಪಿಸಲು ಕೋರಿ ತಹಶೀಲ್ದಾರ ರಾಯಭಾಗ ಇವರು ವರದಿಯನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

ತಹಶೀಲ್ದಾರ ರಾಯಭಾಗ ಇವರು ಸಲ್ಲಿಸಿರುವ ದಾವಿಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿ ರಿ.ಸ.ನಂ 74 ರ ಪಹಣಿ ಪತ್ರಿಕೆ 1951-52 ರಿಂದ 1961-62 ರ ವರೆಗೆ ಗಾಯರಾಣ ಅಂತಾ ದಾವಿಲಿರುತ್ತದೆ. ತದನಂತರ 1962-63 ರಲ್ಲಿ ಸರಕಾರಿ ಪಡೆ ಮತ್ತು ಗಾಯರಾಣಾ ಅಂತಾ ಜಂಟಿಯಾಗಿ ದಾವಿಲಿರುವುದು ದಾವಿಲೆಗಳಿಂದ ಕಂಡುಬಂದಿರುತ್ತದೆ. ನಂತರ 1963-64 ರಿಂದ ಇಲ್ಲಿಯವರೆಗೆ ಪಹಣಿ ಪತ್ರಿಕೆಯಲ್ಲಿ ಸರಕಾರಿ ಪಡೆ ಅಂತಾ ದಾವಿಲಿರುತ್ತದೆ. ತಹಶೀಲ್ದಾರ ರಾಯಭಾಗ ಇವರ ವರದಿ ಹಾಗೂ ದಾವಿಲೆಗಳನ್ನು ಆಧರಿಸಿ ಸರಕಾರಿ ಪಡೆ ಅಂತಾ ಇರುವುದನ್ನು ಗಾಯರಾಣಾ ಅಂತಾ ಪುನಃ ಸ್ಥಾಪಿಸುವ ಕುರಿತು ಈ ಕೆಳಗಿನಂತೆ ಆದೇಶಿಸಿದೆ.

ಆದೇಶ

ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ನಿಯಮಗಳು 1966 ರ ನಿಯಮ 97 ರನ್ವಯ ಪ್ರದತ್ತವಾದ ಅಧಿಕಾರ ಮೇರೆಗೆ ರಾಯಭಾಗ ತಾಲೂಕಿನ ನಸಲಾಪೂರ ಗ್ರಾಮದ



ರಿ.ಸ.ನಂ 74 ಸರಕಾರಿ ಪಡೆ ಅಂತಾ ಇರುವುದನ್ನು ಕಡಿಮೆಗೊಳಿಸಿ ಸರಕಾರಿ
ಗಾಯರಾಣ ಅಂತಾ ಮನಃ ಸ್ಥಾಪಿಸಲು ಈ ಮೂಲಕ ಆದೇಶಿಸಿದೆ.

Sd/-
ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ಬೆಳಗಾವಿ.

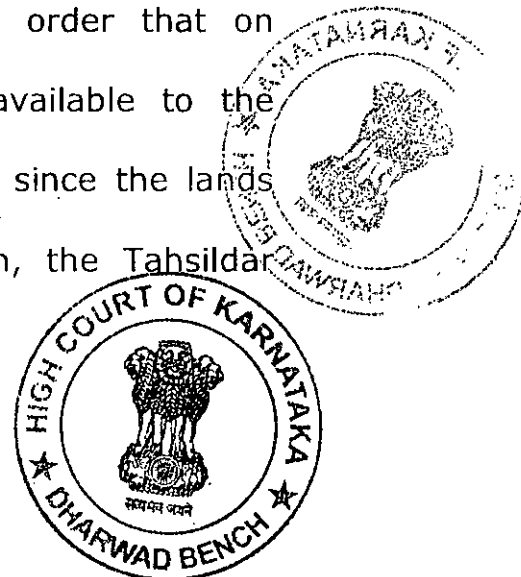
ಪ್ರತಿಯನ್ನು ಮುಂದಿನ ಸೂಕ್ತ ಕ್ರಮಕ್ಕಾಗಿ ಕೆಳಕಂಡವರಿಗೆ ಕಳುಹಿಸಿದೆ.

- 1) ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು ಚಿಕ್ಕೋಡಿ ಇವರಿಗೆ.
- 2) ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ತಾಂತ್ರಿಕ ಸಹಾಯಕರು ಹಾಗೂ ಪದನಿಮಿತ್ತ ಉಪ
ನಿರ್ದೇಶಕರು, ಭೂ ದಾಖಲೆಗಳ ಇಲಾಖೆ ಬೆಳಗಾವಿ ಇವರಿಗೆ.
- 3) ತಹಶೀಲ್ದಾರ ರಾಯಭಾಗ ಇವರಿಗೆ.
- 4) ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯದ ನ್ಯಾಯಾಲಯ ಶಾಖೆಗೆ
2/- ಪಹಣಿ ಪತ್ರಿಕೆಯಲ್ಲಿ ಸರಕಾರಿ ಪಡೆ ಇರುವುದನ್ನು ಕಡಿಮೆಗೊಳಿಸಿ ಸರಕಾರಿ
ಗಾಯರಾಣ ಅಂತಾ ದಾಖಲಿಸುವುದು
- 5) ಹೆಚ್ಚಿನ ಪ್ರತಿ

Sd/-
ಅಪರ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ಬೆಳಗಾವಿ

7. As could be seen from this order which has been passed during the pendency of these writ petitions, the land bearing Sy.Nos.67, 68, 73, 74 and 81 were initially stated to be "Gayarana" lands from 1945 to 1956-57 and this was evidenced by handwritten *pahani*.

8. It is also forthcoming in the said order that on 05.08.1957 these lands were made available to the Gram Panchayath for its utilisation and since the lands were not utilised by Gram Panchayath, the Tahsildar



passed an order on 31.05.1959 holding that these lands were "sarkari pada". Thus, from the year 1959, the revenue authorities were considering these lands as "sarkari pada" and later by order dated 29.01.1961, only Sy.Nos.67, 68 and 73 were restored as "Gayarana" and Sy.Nos.74 and 81 were not reclassified as "Gayarana". The implication of this is that at least from 1961, the land in Sy.Nos.74 and 81 were not classified as "Gayarana".

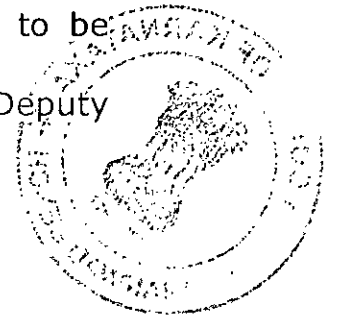
9. It is also stated in the said order that Sy.No.81 was handed over to the Horticulture Department. However, the Deputy Commissioner has proceeded on the footing that the land in Sy.No.74 was originally "Gayarana" land and as per the *akar band* of the said land, the same was kharab land and it was never cultivated. He had, therefore, arrived at the conclusion that the classification of the land as "sarkari pada" was incorrect and he had gone on to state that the lands available as "Gayarana"



in the village were insufficient and therefore, it was necessary to restore these lands as "Gayarana".

10. Thus, in essence, the land which was not considered as "Gayarana" land from 1961 till 2021 i.e., for more than 60 years, the Deputy Commissioner, by the said order dated 21.10.2021, had restored the status of the land as "Gayarana" land. Though there is no challenge to this order, in my view, the legality of this order will have to be examined since this order has been passed in the background of the fact that a contempt petition had been filed for disobedience of the order relating to the grant of lands to ex-servicemen.

11. In my view, having regard to the nature of the order that is passed by the Deputy Commissioner, it is clear that the order has been passed only to ensure that these lands are taken out of the purview of the lands to be granted to ex-servicemen. This conduct of the Deputy Commissioner deserves to be deprecated.



12. As stated above, if a land was not classified as "Gayarana" from 1961, there is absolutely no justification to reclassify it as "Gayarana" and that too in the midst of an on going litigation regarding this very land for grant of land to ex-servicemen. I am, therefore, constrained to hold that the order passed by the Deputy Commissioner on 21.10.2021 cannot be utilised to deny the grant of land to ex-servicemen in Sy.No.74 of Nasalapur.

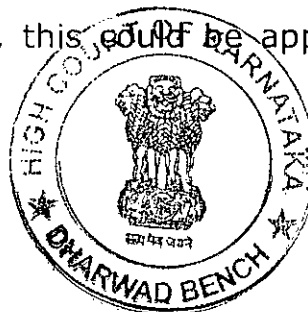
13. Similarly, in respect of lands bearing Sy.Nos.72, 76 and 79 of Budihal Village, the RTC indicates that they are classified as "sarkari pada" land. However, learned Additional Advocate General submits that initially these lands have been classified as "Gayarana" and therefore, they will have to be construed as such. If the revenue records as on today indicate that the lands are classified as "sarkari pada", it would not be open for the State to contend that it was originally "Gayarana" and therefore, it would have to be continued as "Gayarana" land. It is



to be stated here that reservation of a land or assignment of a land for a particular purpose will have to be done in accordance with the provisions prescribed under the Land Revenue Act. In the absence of any notification issued by the Deputy Commissioner reserving the land for specific purpose as contemplated under Section 97 of the Karnataka Land Revenue Act, it would not be open for the State to contend that the lands were reserved for specific purpose. Be that as it may, since the revenue record themselves indicate that the lands bearing Sy.Nos.72, 76 and 79 of Budihal village are classified as "sarkari pada" they would obviously be available for grant.

14. It is submitted by the learned Additional Advocate General that the State Government has amended the Rules and an ex-serviceman would be entitled for allotment of a site, if the lands are not available.

15. It is noticed here that this amendment was made on 27.10.2021 and therefore, this ~~could~~ be applicable only

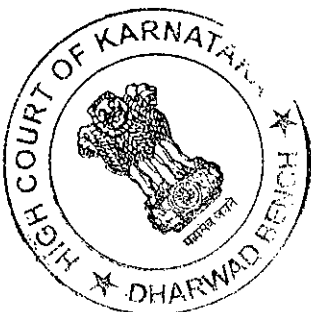


in respect of the applications made after the amendment. It has to be stated here that if an application is made for the grant of land that will have to be considered as per the Rules prevailing as on the date of filing of the application.

16. In all these cases, it is not in dispute that as on the date of the petitioners seeking for grant of land, there was no Rule which enabled a site to be granted in lieu of the land.

17. As long as the statute prescribes or creates a right to the ex-servicemen to seek for the grant of land, the State is obliged to grant them the land, if the land is available.

18. The learned Additional Advocate General also submitted that the prayers made in the writ petitions were in relation to a particular survey number and therefore, it would be impermissible for them to seek for land at some other survey numbers.



19. It has to be stated here that these writ petitions are filed by the ex-servicemen who are seeking for their statutory entitlement for grant of lands. It is obvious that the ex-servicemen would have absolutely no knowledge about the availability of the Government lands and it is only after the writ petitions are filed and affidavits are filed by the Officials, they became aware of the existence of lands which are available for grant. In this view of the matter, the objection of the learned Additional Advocate General that petitioners cannot traverse from the prayers in the writ petitions, cannot be sustained and the same is accordingly rejected.

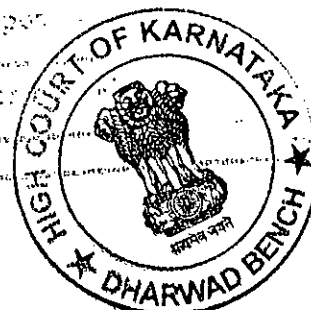
20. In this view of the matter, these writ petitions are

allowed and the Deputy Commissioner is directed to

grant land either in Sy.No:74 of Nasalapur or in

Sy.Nos:72, 76 and 79 of Budihal Village to the

petitioners as per their entitlement.



21. It is also to be stated here that the conduct of the Deputy Commissioner in passing an order to reclassify the lands during the pendency of the writ petition is a clear attempt to ensure that ex-servicemen, who had served the country, are denied their statutory entitlement for grant of land. I am, therefore, of the view that each of the petitioners in these writ petitions would also be entitled to costs of Rs.25,000/-.

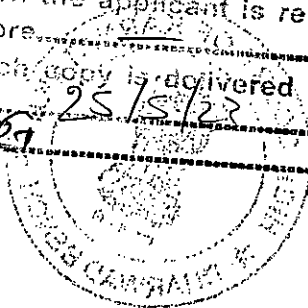
22. This order shall be complied within a period two months from the date of receipt of a copy of this order

SD/-
JUDGE

- a) The date on which the application was made PKS. 28/02/2023
- b) The date on which charges and additional charges, if any, are called for 28/02/2023
- c) The date on which charges and additional charges, if any, are deposited / Paid 28/02/2023
- d) The date on which the copies ready 28/02/2023
- e) The date of notifying the copy is ready for delivery 28/02/2023
- f) The Date on which the applicant is required to appear on before 28/02/2023
- g) The date on which copy is delivered to the applicant 28/02/2023
- h) Examined by 28/02/2023

"TRUE COPY"

23/5/23
Section Officer
Copying Branch
High Court of Karnataka
Dharwad, Bench.



IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT: DHARWAD

WRIT PETITION No: 100462 /2022 (KLR-LG)

BETWEEN:

Subhas S/o. Anna saheb Pol

.....Petitioner

A N D:

1. The State of Karnataka & others

...Respondents

I N D E X

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Place: Dharwad.
Date: 24.01.2021

[Shriharsh A. Neelopant]
Advocate for the Petitioner

IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT: DHARWAD

WRIT PETITION No: 100462 /2022 (KLR-LG)**BETWEEN:**

Subhas S/o. Anna saheb Pol

...Petitioner

AND:

1. The State of Karnataka & others

...Respondents

SYNOPSIS

Sl. No.	DATES	EVENTS
01	15.05.1998	That the petitioner is a Ex-servicemen who has rendered unblemished service for 22 years 10 months as Havaldar in Boarder Security Force in different places from 15.05.1998 to 30.04.2021 till he retire on his application for voluntary retirement.
02	25.08.2014	Similarly situated Ex-servicemen had approached this Hon'ble Court in WP No.26700/2013 for non-consideration of their application for grant of Government land being Ex-servicemen in terms of provisions of Karnataka Land Grant Rules 1969 (hereinafter in short referred as 'Rules'), more particularly Rule 4 of the Rules. This Hon'ble Court vide order dated: 25.08.2014 allowed the writ petitions directing the respondents therein to allot the Government land in favour of the Ex-servicemen and directed the 1 st respondent to pass necessary notification and directed the Deputy Commissioners of all District to survey the lands in terms of Rule 3 and 4 of Rules and to

identify the lands for the purpose of grant to the Ex-servicemen in terms of Section 71 of Karnataka Land Revenue Act and if in any such district agricultural land is not available then the Deputy Commissioner shall identify the revenue land for the purpose of grant in lieu of agricultural land and other directions for enforcement of Rule 5 of the Rules, 1969

07 24.06.2021 In view of the said directions issued by this Hon'ble Court, the 1st respondent passed a circular dated: 24.06.2021 directing all the revenue authorities including the 2nd respondent to allot the government lands to the Ex-servicemen whose annual gross income does not exceeds Rs.8,00,000-00

08 04.12.2021 The petitioner who is an Ex-servicemen who retired in the year 2021 submitted Form No.1A under Rules 1969 seeking allotment of R.S. No.73 or R.S.No.67 which is a Government land in Nasalapur village and R.S.No.190 of Savadatti village of Raibag Taluka for his livelihood and also submitted the representation. Though the petitioner as a soldier and an Ex-servicemen starving before the respondents No.2 to 4 since 2005 for grant of land and recently also submitted an application for grant of Government land, the respondents No.2 to 4 neither considered the application of the petitioner nor granted land to the petitioner, even though government land is available.

2 31

BRIEF FACTS OF THE CASE

That the petitioner is a Ex-servicemen who has rendered unblemished service for 22 years 10 months as Havaladar in Boarder Security Force in different places from 15.05.1998 to 30.04.2021 till he retire on his application for voluntary retirement.

Similarly situated Ex-servicemen had approached this Hon'ble Court in WP No.26700/2013 for non-consideration of their application for grant of Government land being Ex-servicemen in terms of provisions of Karnataka Land Grant Rules 1969 (hereinafter in short referred as 'Rules'), more particularly Rule 4 of the Rules. This Hon'ble Court vide order dated: 25.08.2014 allowed the writ petitions directing the respondents therein to allot the Government land in favour of the Ex-servicemen and directed the 1st respondent to pass necessary notification and directed the Deputy Commissioners of all District to survey the lands in terms of Rule 3 and 4 of Rules and to identify the lands for the purpose of grant to the Ex-servicemen in terms of Section 71 of Karnataka Land Revenue Act and if in any such district agricultural land is not available then the Deputy Commissioner shall identify the revenue land for the purpose of grant in lieu of agricultural land and other directions for enforcement of Rule 5 of the Rules, 1969.

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The petitioner who is an Ex-servicemen who retired in the year 2021 submitted Form No.1A under Rules 1969 seeking allotment of R.S. No.73 or R.S.No.67 which is a Government land in Nasalapur village and R.S.No.190 of Savadatti village of Raibag Taluka for his livelihood and also submitted the representation dated: 04.12.2021.

Though the petitioner as a soldier and an Ex-servicemen starving before the respondents No.2 to 4 for grant of land submitted an application for grant of Government land, the respondents No.2 to 4 neither considered the application of the petitioner nor granted land to the petitioner, even though government land is available.

Though the petitioner as a soldier and an Ex-servicemen starving before the respondents No.2 to 4 for grant of land submitted an application for grant of Government land, the respondents No.2 to 4 neither considered the application of the petitioner nor granted land to the petitioner, even though government land is available. Hence being aggrieved by the inaction on the part of the respondents, the petitioner is preferring the present writ petition seeking appropriate direction by the hands of this Hon'ble Court.

Place: Dharwad.
Date: 24.01.2022

[Shriharsh A. Neelopant]
Advocate for the Petitioner

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IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT: DHARWAD

(ORIGINAL JURISDICTION)

WRIT PETITION No: 100462 /2022 (KLR-LG)

BETWEEN:

Subhas S/o. Anna saheb Pol,
Age: 44 years, Occ: Ex-Servicemen,
R/o: Near Bus-Stand,
Chinchali-591217
Tq: Raibag, Dist: Belagavi.

Petitioner

AND:

1. The State of Karnataka
To the Department of Revenue,
Land Grant-3,
Vidhan Soudha,
Bengaluru-560001.
Represented by its Principal Secretary.
2. The Deputy Commissioner,
Belagavi District,
Belagavi-590001,
Dist: Belagavi.
3. The Assistant Commissioner,
Chikodi Sub-Division,
Chikodi-591201,
Tq: Chikodi, Dist: Belagavi.
4. The Tahasildar,
Raibag Taluka,
Raibag-591317,
Tq: Raibag, Dist: Belagavi.

Respondents

**MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226
AND 227 OF THE CONSTITUTION OF INDIA**

The petitioner most respectfully submits as follows:

BRIEF FACTS OF THE CASE

1. That the petitioner is an Ex-servicemen who has rendered unblemished service for 22 years 10 months as Havaladar in Boarder Security Force in different places from 15.05.1998 to 30.04.2021 till he retire on his application for voluntary retirement. The copy of the pension order is herewith produced and marked as **ANNEXURE-A**.
2. Similarly situated Ex-servicemen had approached this Hon'ble Court in WP No.26700/2013 for non-consideration of their application for grant of Government land being Ex-servicemen in terms of provisions of Karnataka Land Grant Rules 1969 (hereinafter in short referred as 'Rules'), more particularly Rule 4 of the Rules. This Hon'ble Court vide order dated: 25.08.2014 allowed the writ petitions directing the respondents therein to allot the Government land in favour of the Ex-servicemen and directed the 1st respondent to pass necessary notification and directed the Deputy Commissioners of all District to survey the lands in terms of Rule 3 and 4 of Rules and to identify the lands for the purpose of grant to the Ex-servicemen in terms of Section 71 of Karnataka Land Revenue Act and if in any such district agricultural land is not available then the Deputy Commissioner shall identify the revenue land for the purpose of grant in lieu of agricultural land and other directions for enforcement of Rule 5 of the Rules, 1969. The copy of the order dated: 25.08.2014 is herewith produced and marked as **ANNEXURE-B**.



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3. In view of the said directions issued by this Hon'ble Court, the 1st respondent passed a circular dated: 24.06.2021 directing all the revenue authorities including the 2nd respondent to allot the government lands to the Ex-servicemen whose annual gross income does not exceeds Rs.8,00,000-00. The copy of the circular dated: 24.06.2021 issued by the 1st respondent is herewith produced and marked as **ANNEXURE-C**.
4. The petitioner who is an Ex-servicemen who retired in the year 2021 submitted Form No.1A under Rules 1969 seeking allotment of R.S. No.73 or R.S.No.67 which is a Government land in Nasalapur village of Raibag Taluka and R.S.No.190 Savadatti village of Raibag Taluk for his livelihood and also submitted the representation dated: 04.12.2021. The copy of the Form No.1A and representation dated: 04.12.2021 are herewith produced and marked as **ANNEXURE-D and E** respectively. The copy of the record of rights of Sy. No.73 or Sy.No.67 of Nasalapur village and Sy.No.190 of Savadatti Village to show that an extent of 88 acres 76 Guntas of Government land is available for grant is herewith produced and marked as **ANNEXURE-F, F-1 and F-2**.
5. Though the petitioner as a soldier and an Ex-servicemen starving before the respondents No.2 to 4 for grant of land submitted an application for grant of Government land, the respondents No.2 to 4 neither considered the application of the petitioner nor granted land to the petitioner, even though government land is available.
6. Hence being aggrieved by the inaction on the part of the respondents in not considering the application as per Annexure-D and representation at Annexure-E submitted by the petitioner, the petitioner left with no other alternative and efficacious remedy than approaching this Hon'ble Court under

Article 226 and 227 of the Constitution of India has filed this writ petition. The petitioner declares that he has not initiated any other proceedings before any court of Law and Authority and before this Hon'ble court on the same cause of action and on the same subject matter except the above writ petition. Hence, the above Writ petition on the following amongst other grounds.

GROUND S

7. It is submitted that the inaction on the part of the respondents in not considering the application and representation at Annexure-D and E respectively submitted by the petitioner is illegal; perverse, capricious, unjustified and violative of Article 300(A) of the Constitution of India.
8. It is submitted that indisputably the petitioner is an Ex-servicemen who has served in the Boarder Security Force for considerable period of 22 years 10 months as Havaladar without blemish. It is also not in dispute that the gross annual income of the petitioner does not exceed Rs.8,00,000-00 per annum and the petitioner is landless person and as per the Rule 5 of the Karnataka Land Grant Rules 1969 and as per the circular dated: 24.06.2021 the petitioner is fully eligible for grant of government land. Admittedly the government land to the extent of 88 acres 76 Guntas is available in the nearby village at Nasalapur and Savadatti of Raibag Taluka. The petitioner has submitted the representation and application to the respondents No.2 to 4 as a soldier and also as Ex-Servicemen. The petitioner has also submitted an application under Form No.1A for grant of land in terms of circular dated: 24.06.2021. Though the respondent have received the application have neither considered the same nor granted the land to the petitioner. Hence the petitioner is seeking appropriate directions from hands of this Hon'ble Court.

9. It is submitted that Rule 4 of the Rules, 1969 mandates for grant of land to the Ex-servicemen on priority basis in terms of Rule 6. This Hon'ble Court in WP No.26700/2013 has directed the respondents therein to allot the Government land in favour of the Ex-servicemen and directed the 1st respondent to pass necessary notification and directed the Deputy Commissioners of all District to survey the lands in terms of Rule 3 and 4 of Rules and to identify the lands for the purpose of grant to the Ex-servicemen in terms of Section 71 of Karnataka Land Revenue Act and if in any such district agricultural land is not available then the Deputy Commissioner shall identify the revenue land for the purpose of grant in lieu of agricultural land and other directions for enforcement of Rule 5 of the Rules, 1969. Hence the petitioner is before this Hon'ble Court seeking appropriate relief.

GROUND FOR INTERIM PRAYER

NIL
PRAYER

WHEREFORE the petitioner most respectfully prays that this Hon'ble court may kindly be and graciously be pleased to:

- (i) To issue a Writ or Order or Direction in the nature of Writ of Mandamus directing the respondents No.1 and 4 to grant the available government land to the extent of 05 hectares to the petitioner in R.S. No.73 or 67 of Nasalapur village, and R.S.No.190 of Savadatti village, of Tq: Raibag, Dist: Belagavi by considering the application in Form No.1A and representation dated: 04.12.2021 as per **ANNEXURE-D and E** respectively.

- (ii) Grant such other reliefs as deemed fit by this Hon'ble court in the circumstances of the case, in the interest of justice and equity.

INTERIM PRAYER

NIL

Place: Dharwad.
Date: 24.01.2021

[Shriharsh A. Neelopant]
Advocate for the Petitioner

Address for Service

SHRIHARSH A. NEELOPANT
ADVOCATE
S-10, Madhav Squire,
Station Road, DHARWAD-580007
Off: 0836-2956193, Mob:-9449666193
Roll No: KAR/1589/2006



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IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT: DHARWAD

WRIT PETITION No: _____/2022 (KLR-LG)

BETWEEN:

Subhas S/o. Anna saheb Pol,

.....Petitioner

AND:

1. The State of Karnataka & others

.....Respondents

VERIFYING AFFIDAVIT

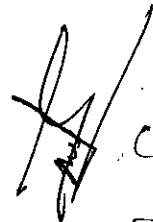
I, Subhas S/o. Anna saheb Pol, Age: 44 years, Occ: Ex-Servicemen, R/o. Near Bus-Stand, Chinchali-591217, Tq: Raibag, Dist: Belagavi, today at Dharwad do here by solemnly affirm and state on oath as under-

1. I am the petitioner in the above case. I know the facts and well conversant with the case. Hence, I am swearing to this affidavit.
2. The statement made in paragraphs 1 to 09 of this writ petition accompanying this affidavit are true and correct to the best of my knowledge and information and I believe them to be true.
3. That the Annexure- A to F-2 are true copies of the originals.

Place: Dharwad
Date: 24.01.2022

Identified by me.

(Shriharsh A Neelopant)
Advocate for petitioner


(Subhas)
DEPONENT

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ANNEXURE- A

Tele Mil 4610002980
18004253445(Toll Free)
Emails : kingofnilgiri@nic.in
blackpompom@nic.in

Madras Regiment Abhilekh Karyalaya
Records The Madras Regiment
PIN-900458
c/o 56 APO

2602745/DP/PG-3

30 Apr 2021

The Assistant General Manager
State Bank of India
Centralised Pension Processing Centre (CPPC)
2nd Floor, B-Block, B.K.G Complex,
No 1, Avenue Road, Bengalore
Karnataka - 560009

FORWARDING OF SERVICE ELEMENT e-PPO IN RESPECT OF
NO 2602745W EX HAV SUBHAS POL

1. The above named individual has been granted service element with effect from 01 May 2021 for life. The following documents are forwarded herewith for making payment of DCRG and Monthly Pension:-

- | | |
|--|-----|
| (a) Service Element e-PPO No <u>159202100403/2100</u> | One |
| (b) Descriptive Roll (IAFA - 369) cum Undertaking Cert | One |

2. His pensionary entitlements are mentioned in e-PPO.

3. DPDO / Treasury Office/PDA's only. If the pensioner desires payment of pension through any other nationalized Bank and applies for the same, action may please be taken to transfer his all pension documents and pension account accordingly.

4. Please acknowledge receipt of the above documents.


Lt Col
Senior Record Officer
for OIC Records

Enclosures : - As mentioned above.

Copy to:-
The Branch Manager
State Bank of India
Raibag - Branch
Jalalpur Road
Belgaum - Dist
Karnataka- 591 317

1. For information. You are requested to credit the amount of DCRG in the account number of the pensioner i.e. 10758937377 on receipt of the e-PPO and its connected documents from the link Branch and make payment of monthly pension regularly.

2. Please complete and return the attached IAFZ-2010 (Acknowledgement) for first payment of pension) immediately after making the first payment of pension to the individual.

1. The following documents are forwarded herewith:-

- | |
|--|
| (a) e- Pension Payment Order No <u>159202100403/2100</u> |
| (b) Enquiry Slip. |

2. You are advised to sign the attached enquiry slip and approach your PDA to receive your pensionary benefit as per the ibid PPO. In case the payment is not credited within one month by bank authority, you may also advised to contact with the following :-

SBI CPPC Bangalore
SBI Customer care-1800112211 & 18004253800

✓ No 2602745W. Ex Hav
Subhas Pol
Chinchali - Vill & Post
Raibag- Tk
Belagavi - Dist
Karnataka- 591 217
Mob No - 7830821334

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PPO Register Ser No 256

INQUIRY SLIP

Date of visit of pensioner
Army No of the pensioner
Rank of the pensioner
Name of the pensioner
Record Office letter No & Date

2602745W
EX HAN
Subhas pol
2602745DP/PG-3 dt 30/4/2021

Date :

(Signature of the Pensioner)

Part-II

The above PPO has been received. Please report to this office for payment on _____
or the above PPO has not been received till today. Please call again on _____
for enquiry/payment.

Date :

(Signature of Bank Manager/Treasury Officer/
Pension Pay Master/DPDO)

Tel : 26142897

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ARMY GROUP INSURANCE FUND
AGI BHAWAN, RAO TULA RAM MARG,
POST BAG NO 14, PO - VASANT VIHAR,
NEW DELHI - 110057

27-04-2021

MADR/MA/2602745W

To,

HAV SUBHAS POL

CHINCHALI

CHINCHALI

RAIBAG

Karnataka

591217

**PAYMENT OF Regular Maturity
UNDER ARMY GROUP INSURANCE SCHEME IN RESPECT OF BENEFIT MEMBER**

2602745W

HAV

SUBHAS POL

SYNDICATE BANK, AGI BHAWAN, NEW DELHI - 110057

CHEQUE NO Through NEFT

DATED

30-04-2021 FOR Rs.

₹ 5,99,588.00

HAS BEEN SENT TO YOUR SB A/C No.

10758937377

State Bank of India

SBIN0005G20

SBI RAIBAG JALAPUR RD KARNATAKA-591317

TOWARDS PAYMENT OF ABOVE BENEFIT AS PER DETAILS GIVEN BELOW :-

CREDITS	AMOUNT	DEBITS	AMOUNT
AMOUNT PAYABLE	₹ 6,54,879.00	SHORT RECOVERY	
EXCESS RECOVERY		EIC SUBSCRIPTION	₹ 55,291.00
TERMINAL BONUS		INVESTED IN SSD*	
OTHER CREDITS		SHARE OF OTHERS	
		(A) WIFE/HUSBAND	
		(B) MOTHER/FATHER	
		(C) CHILDREN	
		(D) OTHERS	
		LOANS	
		(A) HBA	₹ 0.00
		(B) CONVEYANCE	₹ 0.00
		(C) PCA	₹ 0.00
		(D) OTHERS	
		OTHERS DEBITS	
TOTAL	₹ 6,54,879.00	TOTAL	
PAYABLE	₹ 5,99,588.00	REMITTED TO BENEFICIARY	₹ 5,99,588.00
NET PAYABLE	₹ 5,99,588.00		
AMOUNT SENT THROUGH NEFT. PLEASE CHECK YOUR BANK ACCOUNT.			

*Invested with AGI Bankers

THIS IS A COMPUTER GENERATED OUTPUT. SIGNATURE NOT REQUIRED

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THERE IS NO PROVISION OF ANY REFUND OF PREMIUM
AFTER THE EXPIRY OF EXTENDED INSURANCE POLICY.

एक्स्टेंडेड आर्मी ग्रुप इन्श्योरेंस सर्टिफिकेट

EXTENDED ARMY GROUP INSURANCE CERTIFICATE

To be surrendered on the death of Insurant to AGI Fund,
Rao Tula Ram Marg, Post Bag No 14, Vasant Vihar, New Delhi -

CONTACT Nos : Claim Coord - 011-261144837, Exch AGI - 26142749, 2651031, Claim Div - 9882484303, 7290006134.

Email : adagif@gmail.com

DETAILS OF INSURANT

प्रमाण पत्र संख्या Certificate No. 5150462 जारी करने की तारीख Date of Issue 01-05-2021
नम्बर No 2602745W रैंक Rank HAV नाम Name SUBHAS POL
रेजि/कोर Regt./Corps Madras Regiment
जन्म तिथि Date of Birth 01-06-1978 सेवा निवृत्ति की तारीख Date of Retirement 30-04-2021
बीमा अवधि Valid Period of EI cover from 01-05-2021 से To 30-04-2051 तक
मृत्यु पर बीमाकृत रकम Sum assured Rs. on death ₹ 5,00,000.00 उत्तरजीवी लाभ Surviving Benefits - Nil
वपिस नहीं होने वाली प्रीमियम One time non refundable premium Paid Rs ₹ 55,291.00
नामिनी का सम्बन्ध और पता दूसरे नामिनी का नाम, सम्बन्ध और पता

Nominee with Relationship and Address

RAJESHREE
Wife
CHINCHALI
CHINCHALI
RAIBAG
Karnataka 591217

Contingent Nominee(s) with Relationship
PRAVEEN POL
Son
VIMAL
Mother

To,
Army Group Insurance Fund,
AGI Bhawan, Rao Tula Ram Marg,
Post Bag mNo. 14, P.O. Vasant Vihar,
New Delhi - 110057

- मैं बहुत दुख से सूचित करता/करती हूँ कि मेरे पति/पत्नी/माता/पिता/ (नम्बर) रैंक.
I regret to inform that my husband/wife/mother/father/.....(As applicable) No. Rank.....
नाम मृत्यु की तारीख मृत्यु का कारण स्थान
Name Expired on (date)..... due to (cause)..... at (place)
- मैं मृत्यु प्रमाण पत्र भेज रहा/रही हूँ।
I enclose the death Certificate.
- मैं प्रमाणित करता / करती हूँ कि प्रमाण पत्र के अनुसार मैं ही नामिनी हूँ।
I certify that I am the Nominee/Contingent Nominee (as applicable) as per the Certificate above.

तारीख

Date.....

नामिनी के हस्ताक्षर

Signature of Nominee

Notes :-

- मैं बहुत दुख से सूचित करता/करती हूँ कि मेरे पति/पत्नी/माता/पिता/ (नम्बर) रैंक
In case contingent nominee is the claimant state reason for so doing under paragraph 3 above.
- यह प्रमाण पत्र तभी मान्य होगा जब एक्स्टेंडेड इन्श्योरेंस नम्बर के रकम बचत बीमा रकम राशि से शिरोज अथवा रिटायरमेंट के समय कटा दिये हों तथा पाने के योग्य हों।
This certificate is valid subject to recovery of lumpsum one time non refundable premium from your maturity benefits and your eligibility for extended insurance cover at the time of your release or retirement.

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सं/Service Number	2502745W	क्रम संख्या/Serial No.	Nº 6825327
नाम/Name	SURHAS POL		
सेवानिवृत्ति के समय रैंक	MAV		
Rank at the time of retirement			
रेजिमेंट/कोर/शाखा	MAQAS/REGT		
Regt/Corp/Branch			
ट्रेड/Trade	ENGINEER		
जन्मतिथि/Date of Birth	30.06.1952		
पिता का नाम/Father's Name	ANNA SINGH		
पता/Address	2205 CHUNARALI		
	72 RAJENDRA NAGAR, BILGAVA		
	59127 PUNJAB KUDACHI		
विमुक्ति की तारीख/Date of Discharge	30.04.2021		
पेंशन/Pension Rs.	2365/-		
प्रकार और विकलांगता प्रतिशत			
Type/Percentage of Disability			
तारीख एवं स्थान	14.07.2021		
Date & Place of Issue			




(Wg Cdr Ishwar Kodoli) (Ret.)
Joint Director
मुख्यालय मोहर
परिचालन अधिकारी, हस्ताक्षर
Signature of Issuing Officer
Bilgaavi-590 001

पहचान चिह्न/Identification Mark LEAD OF FIREARM NOCH NECK बाएं हाथ का निशान/LHT धारक के हस्ताक्षर Signature of the Holder	पहचान पत्र - भूतपूर्व सैनिक IDENTITY CARD - EX-SERVICEMEN  यह कार्ड अहस्तांतरणीय है और मांगने पर प्रस्तुत किया जाएगा। This card is not transferable and is to be produced on demand. पाने वाला इसे केन्द्रीय सैनिक बोर्ड, रक्षा मंत्रालय, पश्चिम-खण्ड-4, आर के पुरम, नई दिल्ली-110 066 को बिना टिकट लगा पत्र पेट्री में डाल दें या पास के सैनिक यूनिट या थाने में जमा करा दें। Finder drop this in letter box postage free to Kendriya Sainik Board, Ministry of Defence, West Block-IV, RK Puram, New Delhi-110 066 or handover to the nearest Military Unit or Police Station.
(Wg Cdr Ishwar Kodoli) (Ret.) मुख्यालय मोहर परिचालन अधिकारी, हस्ताक्षर Signature of Issuing Officer PRO No - 8483450000002	

TR

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TYPED COPY OF RELEVANT
PORTION OF ANNEXURE- A

INQUIRY SLIP

Date of visit of pensioner
Army No of the pensioner 2602745W
Rank of the pensioner EX Hav
Name of the pensioner Subhas Pol
Record Office letter No & Date 2602745/DP/PG-3 dt 30.04.2021

Serial No. 6825327

Service Number: 2602745W
Name: SUBHAS POL
Rank at the time of retirement: HAV
Regt/ Corp/ Branch: MADRAS REGT
Trade: INF SOL
Date of birth: 01.06.1978
Father's Name: ANNA SAHEB
Address: at post Chinchali, Tq: Raibag, Dist: Belagavi-591217 P.S. Kudachi
Date of discharge: 30.04.2021
Penbsion Rs. 23,625/-
Type/ Percentage of Disability: -
Date & Place of Issue: 14.07.2021, Belagavi.
Identification mark: ABM AT UPPER END OF STERNAL NOTCH NECK

T
f

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 25TH DAY OF AUGUST 2014

BEFORE

THE HON'BLE DR.JUSTICE JAWAD RAHIM

WRIT PETITION NO.26700/2013 C/W

WRIT PETITION NOS.56331/2013, 46878/2013,

37425/2013, 33080/2013, 7000/2014 &

2023/2014 (KLR-RES)

W.P.NO.26700/2013

BETWEEN:

SRI.H.N.JAYA KUMAR
S/O NINGE GOWDA
AGED ABOUT 40 YEARS
R/O HETHUR VILLAGE AND POST
SAKALESH PURA TALUK
HASSAN DISTRICT - 573 201.

...PETITIONER

(BY SRI. SUMANTH L.BHARADWAJ, ADV.)

AND:

1. STATE OF KARNATAKA
REPRESENTED BY ITS
PRINCIPAL SECRETARY
REVENUE DEPARTMENT
BANGALORE - 560 002.
2. THE DEPUTY COMMISSIONER
HASSAN DISTRICT
HASSAN - 573 201.
3. THE ASSISTANT COMMISSIONER
SAKLESH PURA TALUK
HASSAN DISTRICT - 573 201.



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4. THE THASILDHAR
SAKLESH PURA TALUK
HASSAN - 573 201.
5. THE DIRECTOR
DEPARTMENT OF SAINIK WELFARE
& RESETTLEMENT,
FIELD MARSHAL
K.M.KARIYAPPA BHAVAN
NO.58, FIELD MARSHAL ROAD
K.M.CARIYAPPA ROAD
BANGALORE - 560 025.

...RESPONDENTS

(BY SMT.M.ELIZABETH, HCGF FOR R4)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA WITH A PRAYER TO DIRECT THE RESPONDENTS TO GRANT 10 ACRES OF LAND IN SURVEY NO.80 SITUATED AT HETHUR VILLAGE AND POST, SAKALESH PURA TALUK, HASSAN DISTRICT IN FAVOUR OF PETITIONER BY CONSIDERING THE APPLICATION AT ANNEXURE-D DATED 25.02.2012.

W.P.NO.2023/2014BETWEEN:

SRI.G.KRISHNAMURTHY
S/O LATE R.GANESH IYER
AGED ABOUT 84 YEARS
OCC:EX-SERVICEMAN
RESIDING AT NO.1060/C
3RD MAIN, NEAR DHARMARAJA TEMPLE
K.N.EXTENSION
YESHWANTHAPURA
BANGALORE - 560 022.

...PETITIONER

(BY SRI.I.R.BIRADAR, ADV.)

AND:

1. THE STATE OF KARNATAKA
BY ITS SECRETARY

REVENUE DEPARTMENT
M.S.BUILDING, BANGALORE - 01.

2. THE DEPUTY COMMISSIONER
BANGALORE URBAN DISTRICT
BANGALORE - 560 010.
3. THE JOINT DIRECTOR
BANGALORE URBAN DISTRICT
SOLDIERS WELFARE AND REHABILITATION
DEPARTMENT
FIELD MARSHAL
K.M.CARIYAPPA BHAVAN
BANGALORE - 560 025.
4. THE TAHASILDAR
ANEKAL TALUK
ANEKAL - 550 120.

...RESPONDENTS

(BY SRI.M.ELIZABETH HCGP)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA WITH A PRAYER TO DIRECT THE R2 AND R4 TO CONSIDER THE APPLICATION DATED 01.12.2012 VIDE ANNEX-G WHICH WAS FORWARDED BY THE R3 TO TEHR2 VIDE LETTER DATED 17.11.2-12 VIDE ANNEX-F IN ACCORDANCE WITH LAW AND TO PASS SUITABLE ORDERS IN ACCORDANCE WITH LAW.

W.P.NO.7000/2014

BETWEEN:

HARSHAVARDHAN Y.D.,
S/O A.DEVAPPA
AGED ABOUT 33 YEARS
R/O NO.3784/1, BALEGAR STREET
HASSAN - 573 201.

...PETITIONER

(BY SRI.SUMANTH L BHARADWAJ, ADV.)

AND:

1. STATE OF KARNATAKA
REPRESENTED BY ITS
CHIEF SECRETARY
REVENUE DEPARTMENT
VIDHANA SOUDHA, BANGALORE - 01.
2. THE REGIONAL COMMISSIONER
MYSORE DIVISION
MYSORE - 573 211.
3. THE DEPUTY COMMISSIONER
KODAGU DISTRICT
MADIKERI - 573 201.
4. THE ASSISTANT COMMISSIONER
MADIKERI SUB-DIVISION
MADIKERI
KODAGU DISTRICT - 571201.
5. THE THASILDAR
SOMVARPET TALUK
KODAGU DISTRICT
MADIKERI - 571 201.
ANEKAL - 550 120..

...RESPONDENTS

(BY SMT.M.ELIZABETH, HCGP)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA WITH A PRAYER TO DIRECT THE RESPONDENT TO GRANT 10 ACRES OF LAND IN SY.NO.28/5, SITUATED AT KELAKODLI VILLAGE, KODLIPETE HOBLI, SOMVARPETE TQ., KODAGU DIST., IN FAVOUR OF THE PETITIONER.

W.P.NO.33080/2013

BETWEEN:

SRI.L.KUMAR
EX-SERVICEMAN
S/O L.LINGANNA

AGED BOUT 48 YEARS
R/AT NARASAPUR VILLAGE
SRIGANDADAKAVAL, YASHAWANTHAPURA
HOBLI, BANGALORE NORTH TALUK
VISHWANEEDAM POST
BANGALORE - 91.

PETITIONER

(BY SRI.NAGAI AH, ADV.)

AND:

1. STATE OF KARNATAKA
REPRESENTED BY ITS SECRETARY
REVENUE DEPARTMENT
M.S.BUILDING
BANGALORE - 560 001.
2. THE DEPUTY COMMISSIONER
BANGALORE URBAN DISTRICT
K.G.ROAD
BANGALORE - 560 009.
3. THE TAHASILDAR
BANGALORE SOUTH TALUK
KANDAYA BHAVANA
K.G.ROAD,
BANGALORE - 560 009.
4. DEPARTMENT OF SAINIK WELFARE
& RESETTLEMENT, FIELD MARSHAL K.M.
KARIYAPPA BHAVAN
NO.58 FIELD MARSHAL
K.M.KARIYAPPA ROAD
BANGALORE - 560 025.
REP BY ITS
DIRECTOR.

...RESPONDENTS

(BY SMT.ELIZABETH, HCGP)

THIS WRIT PETITION IS FILED UNDER ARTICLES
226 AND 227 OF THE CONSTITUTION OF INDIA WITH A
PRAYER TO QUASH THE INTIMATION LETTER DATED
28.03.2013 ISSUED BY THE R-3 VIDE ANNEX-M.

W.P.NO.37425/2013

BETWEEN:

SRI.ANAND RAO
S/O V.VENKOBA RAO
AGE: 65 YEARS
OCC:EX-AIRFORCE SARGENT
(EX-SERVICE MAN)
R/AT NO.47, 5TH CROSS
VIJAYALAKSHMI LAYOUT
ABBIGERE
CHICKKABANAWARA POST
BANGALORE -560 090.

...PETITIONER

(BY SRI.SHREESHAIL TURKANI, ADV.)

AND:

1. THE GOVERNMENT OF KARNATAKA
REF BY SECRETARY
REVENUE DEPARTMENT
VIDHANA SOUDHA
BANGALORE - 560 001.
2. THE DEPUTY COMMISSIONER
OFFICE OF THE DEPUTY COMMISSIONER
BANGALORE NORTH TQ.
BANGALORE
3. DIRECTOR
OFFICE OF THE DIRECTOR
DEPARTMENT OF SAINIK WELFARE
AND RE-SETTLEMENT
NO.58, FIELD MARSHAL K.M.
KARIYAPPA BHAVAN
BANGALORE - 25.

...RESPONDENTS

(BY SMT.M.ELIZABETH, HCGP)

THIS WRIT PETITION IS FILED UNDER ARTICLE 226
OF THE CONSTITUTION OF INDIA WITH A PRAYER TO
QUASH THE GOVERNMENT CIRCULAR NOTE DATED

31.07.2010 VIDE ANN-J PASSED BY R1 AND ALSO
ENDORSEMENT ORDER DATED 20.03.2013 PASSED BY
THE RESPONDENT NO.2 VIDE ANNEXURE-K.

W.P.NO.46878/2013

BETWEEN:

SMT.MADEVI
W/O LATE SRI.H.D.RANGAIAH
AGED ABOUT 50 YEARS
R/O UTTANAHALLI VILLAGE
JALA HOBLI
BANGALORE NORTH (ADDL.) TALUK
BANGALORE DISTRICT.

...PETITIONER

(BY SRI.V.R.BALARAJ, ADV.)

AND:

1. THE STATE OF KARNATAKA
REPRESENTED BY ITS
SECRETARY TO GOVERNMENT
(LAND GRANTS)
REVENUE DEPARTMENT
M.S.BUILDING
BANGALORE - 560 001.
2. THE DEPUTY COMMISSIONER
BANGALORE URBAN DISTRICT
BANGALORE - 560 009.
3. THE TAHASILDAR
BANGALORE NORTH (ADDL.) TALUK
YELAHANKA
BANGALORE - 560 062.
4. THE DIRECTOR
DEPARTMENT OF SAINIK & RE-SETTLEMENT
FIELD MARSHAL K.M.KARIYAPPA
BHAVAN, NO.58, FIELD MARSHAL

K.M.KARIYAPPA ROAD
BANGALORE (URBAN DISTRICT)
KARNATAKA - 560 025.

...RESPONDENTS

(BY SMT.M.ELIZABETH, HCGP)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA WITH A PRAYER TO DIRECT THE RESPONDENTS TO ALLOT THE LANDS IN SY.NO.73 MEASURING 1 ACRE 14 GUNTAS OF UTTANAHALLI VILLAGE & SY.NO.25, MEASURING 24 GUNTAS OF MARANAYAKANAHALLI VILLAGE, JALA HOBLI, BANGALORE NORTH TQ., BANGALORE DISTRICT IN FAVOUR OF THE PETITIONER UNDER THE EX-SERVICE MAN QUOTA.

W.P.NO.56331/2013

BETWEEN.

SMT.VANAJAKSHI
W/O LATE B.M.PAMAKRISHNA
AGED ABOUT 56 YEARS
RESIDENT OF HONAKARAVALLI VILLAGE
KUNAGANAHALLI POST
K.HOSAKOTE HOBLI
ALUR TALUK - 573 213
HASSAN DISTRICT.

...PETITIONER

(BY SRI.G.G.TIAGASHETTI, ADV.)

AND.

1. STATE OF KARNATAKA
REPRESENTED BY ITS
PRINCIPAL SECRETARY
BANGALORE - 560 001.
2. THE DEPUTY COMMISSIONER
HASSAN DISTRICT
HASSAN - 573 201.

3. THE ASSISTANT COMMISSIONER
SAKALESHPURA TALUK
HASSAN - 573 201.

4. THE TAHASILDHAR
ALUR TALUK
HASSAN - 573 201.

RESPONDENTS

(BY SMT.M.ELIZABETH, HCGP)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA WITH A PRAYER TO QUASH THE IMPUGNED ENDORSEMENT PASSED BY THE R4 DATED 10.12.1998 BEARING NO.DARKASTU 132/1998-99 AS PER ANNEX-E.

THESE PETITIONS COMING ON FOR FURTHER HEARING THIS DAY THE COURT MADE THE FOLLOWING:-

ORDER

The genesis of this writ action is non-consideration of the applications filed by the petitioners and similarly placed persons for grant of land.

2. Heard the learned counsel Sri. Sumanth L. Bharadwaj, Shreeshail Turkani, Sri. S. Dorai Babu, Sri. Chetan, Sri. R. Biradar, Sri. V.R. Balaraj, Sri. Nagaiah for the petitioners and the learned Government Advocates and perused the records from which following contextual facts surface for consideration.

3. Petitioners in these writ petitions are similarly placed and they seek virtually the same relief. Thus, as common legal and factual issues have arisen for consideration, these petitions are clubbed and taken up for hearing and disposal together.

4. Petitioner in W.P.No.26700/2013 H.N.Jaya Kumar claims he is a Soldier of Border Security Force on appointment as a Constable in the 1993. He applied to the government for grant of land in terms of entitlement under the provisions of the Karnataka Land Revenue Act, 1964. He has referred to the gazette notification dated 03.05.1972 whereby respondent No.1-State had reserved 5499.37 acres of land in Sakleshpur Taluk, Hassan District for the purpose of grant of land as envisaged under the provisions of Karnataka Land Grant Rules. His grievance is that he and similarly placed ex-serviceman and soldiers had approached the Government, but there is no action on its part. Some such disappointed applicants had approached this

Court in W.P.No.47443/2011 (KLR-RES) seeking direction to respondent No.2 viz., the Deputy Commissioner of Hassan District and respondent No.4, the Tahsildar to consider their applications. The writ action was accepted by this Court questioning the order passed by those authorities and it was allowed on 13.07.2012 vide Annexure-F directing to grant land. The petitioner has therefore, sought a writ in the nature of mandamus to direct the respondents to grant 10 acres of land in Sy.No.80 situated at Hittur Village, Sakleshpur Taluk, Hassan District.

5. W.P.No.2023/2014 is also by an ex-serviceman who served as Hawaldar in Indian Army for 21 years and was discharged from service on 09.06.1971. Being eligible for grant of land, he applied to respondent No.2 - the Deputy Commissioner who forwarded it to the Tahsildar with a direction to verify and report. The respondent No.4 recommended petitioners' case for allotment of land, despite it, no allotment is made. Thus, he has also

sought direction respondents 2 and 4 to consider his application submitted on 01.12.2012 vide Annexure-G forwarded by respondent No.3 to respondent No.2 on 17.11.2012 vide Annexure-F, in accordance with law and to grant to him out of the land in Sy.No.26 of Malingondanahalli Village, Kengeri Hobli, Barigalore South Taluk or the land in Sy.No.26/13 situate at Deshpande Guttahalli Viliage, Sarjapur Hobli.

6. Writ Petition No.7000/2014 is by Harshavardhan Y.D. an ex-serviceman of the Indian Army. He claims he had sought grant of land vide his application submitted to respondent No.2 on 08.01.2007 vide Annexure-C. It was forwarded to respondent No.2 vide Annexure-D. He claims he was successful in getting the grant but the land is not delivered to him.

7. The grievance of the petitioner is that respondent No.5 after receipt of the application forwarded it to respondent No.3 for necessary action and then respondent No.4 in turn conducted the spot

inspection and forwarded report recommending grant of land. However, the respondent No.3 vide impugned memo raised untenable issues and has failed to complete the process of allotment even though there is no impediment. Thus, he has sought a writ in the nature of mandamus to direct respondents to consider his application for grant of 10 acres of land in Sy.No.28/5 situate at Kelakodi Village, Kodlipete Hobli, Somavarpete Taluk, Kodagu District.

8. In W.P.No.33080/2013, the petitioner L Kumar claims he is similarly placed like other petitioners. He claims he has been in cultivation of land unauthorizedly and had filed form Nos.50 & 53 of the Karnataka Land Revenue Act through the Sainik Welfare and Re-Settlement Board for regularisation of his occupation or to grant land in view of the State notifying and calling for application from ex-serviceman for rehabilitation. His application is dated 04.05.1998 vide Annexure-B. In his case, the Minister for revenue is said to have directed the respondent



No.2 to consider his application vide letter dated 05.01.2000 at Annexure-C. It is alleged, the respondent No.2 unjustifiably directed respondent No.3 to consider grant of land in Sy.No.8 of Sulikere Village measuring 4 acres vide Annexure-D. His grievance is as his application was not considered by respondent No.3, he had filed writ petition 20058/09 before this Court. The writ petition was allowed on 27.07.2009 directing respondent No.2 to consider his application, but no order has been passed as yet. He relies on the proceedings initiated by him in C.C.C.No.182/2013 to punish the respondents for contempt. It is alleged, the respondent No.3 ignored the directions of this Court and has vide endorsement dated 28.03.2013 declined to grant land. Thus, he seeks a writ of certiorari to quash the endorsement dated 28.03.2013 vide Annexure-B and seeks further direction to other respondents to allot land or regularize his occupation.

9. W.P.No.37425 is by Anand Rao who served the Indian Air Force as Sargent from 1966-86 and claims he has discharged the duties to the best of his ability and served the cause of nation. He took part in the Indo-Pak war in 1971 and was conferred the Sangram medal by the President of India. He was discharged on 22.07.1985 vide Annexure-A. Being eligible, he applied to the Government for the grant of land in the Bangalore North Taluk District through his application dated 27.07.2009. His grievance is though the Tahsildar and the Assistant Commissioner recommended the grant, the application was not considered by respondent No.2 relying on the Government Circular Note KE No.32 Praka/2010 dated 31.07.2010 has declined to accept his request vide endorsement Order No. LND/NA/CR/55/2011-12 dated 20.03.2013. Thus he seeks directions to the respondent No.2 to grant land measuring 1 acre 25 guntas in Survey No. 9 of Thimmarasanahalli Village, Bangalore North Taluk.

10. W.P.No.46878/2013 is by Smt.Madevi, a widow of ex-serviceman H.D.Rangaiah who died on 12.07.1992. It is averred he joined Army on 14.05.1947 and served till 09.09.1966. The petitioner and her daughter are his surviving heirs and had applied to respondents for allotment of land in Sy.No.73 of measuring 1 acre 14 guntas of Uttanahalli Village and Sy.No.25 measuring 24 guntas of Maranayakanahalli Village, Jala Hobli, Bangalore North Taluk, Bangalore District. It is averred, the respondent No.1 had directed respondent No.2 to verify the case of the petitioners. Respondent No.2 after due verification has sent positive report to respondent No.3 recommending grant of land. Despite such report, land is not allotted. Thus, she has sought a writ in the nature of mandamus to direct the respondents to grant to her land in Sy.No.73 measuring 1 acre 14 guntas of Uttanahalli Village and Sy.No.25 measuring 24 guntas of Maranayakanahalli Village, Jala Hobli, Bangalore North Taluk, Bangalore District.

11. W.P.No.56331/2013 is by Smt.Vanajakshi who claims her husband B.M.Ramakrishna served in Indian Defence as Lance Naik. He died intestate on 26.07.1999 survived by her and her children. During his lifetime, he had applied for grant of land in Sy.No.6 measuring 12 acres and 2 guntas of Honakaravally Village, Kunaganahalli Post, Alur Taluk, Hassan District through his commandant. It is averred petitioner's husband had virtually become bed ridden because of such ailments could not personally pursue the application filed on 03.08.1998. Their grievance is, despite repeated requests and demands the authorities did not consider the application favourable and instead have issued the endorsement under signature of the 4th respondent dated 10.12.1998 declining to accept the application. They, thus sought writ in the nature of certiorari to quash the endorsement and to direct the respondents to grant lands vide Annexure-C.

12. During preliminary hearing, I had directed the petitioners to implead the Director, Department of Sainik Welfare and Re-Settlement - the authority constituted for the welfare of the ex-servicemen and soldiers, for effective adjudication of the issues.

13. In response to the Court's directions, Major R.S.Vishwanath, Joint Director of Sainik Welfare and Re-Settlement Board along with Captain P.V.Shetty, Director of the Sainik Welfare and Re-Settlement Board appeared and have filed certain documents, which includes a brochure giving details of benefits extended to ex-serviceman and their dependants by the Government of Karnataka published on the occasion of flag day on 05.12.2013. It is in the form of a souvenir and I have taken it on record.

14. Directions was also issued to the Deputy Commissioners of each District in the State of Karnataka to file detailed report, as to which land coming within the territorial limits of their jurisdiction is identified and reserved for purpose of grant to the

ex-serviceman as envisaged under Section 71 of the Karnataka Land Revenue Act, 1964. The attention of all the Deputy Commissioners was drawn to the Government notification issued in pursuance to which the Deputy Commissioner, Hassan District had identified the lands to an extent of 5499.37 acres in Hassan District vide Notifications dated 02.05.1972 and 03.05.1972 (Annexure C) for such grant.

15. It is evident from the notification issued by the Government vide Annexure-C dated 03.05.1972 produced in W.P.No.26700/2013 that the Government of Karnataka, in exercise of the powers conferred by Section 71 of the (Mysore) Karnataka Land Revenue Act, 1964, had identified 5499.37 acres of land situate in various villages of Hassan District as detailed in the notification, to be reserved for allotment to ex-serviceman and soldiers.

16. This necessitated further directions to the other District Commissioners to submit report whether similar statutory duty has been performed by them to

identify and reserve land within their territorial jurisdiction for the purpose of grant to the ex-serviceman and soldiers. It is regrettably noted, except one Deputy Commissioner, the rest of the Deputy Commissioners have failed to comply with the direction requiring serious view to be taken of inaction on their part.

17. On being questioned Mrs. Elizabeth, learned Additional Government Advocate could not justify their lapses but has done her best to secure information from these officers at her level and has produced some of it before this Court. That is not sufficient material.

18. In the circumstances, the Principal Secretary, Department of Revenue, Government of Karnataka was directed to verify and report as to what action was taken by the Government to address the grievance of the petitioners. If not, the stage of such applications and reason for its pendency. He was to submit statistical report as to how many applications

were received till date and what action was taken on it. After such directions some junior officers appeared and submitted report, which was not in terms of directions. Hence, an order was passed on 02.07.2014 directing the Principal to appear in person. He appeared and has filed a report.

19. While dealing with these writ petitions, incidental question has arisen as to what action the Government had taken to allot land to awardees who were decorated with gallantry and service medals as part of awards by the President of India for their meritorious service in the defence. Though Government is silent, a statistical report is filed by Captain P. Shetty and Major Swaminathan detailing the applications received and forwarded to the Government. It gives a rosy picture indicating that the Government has taken action but on further ascertainment of facts, I am dismayed. The report does not reflect the truth. It is material to note, the Government of Karnataka has established a Board in

nomenclatured "Sainik Welfare and Re-Settlement Board" for the welfare of defense personnel and is headed by retired officers. Presently Major Vishwanathan and Captain P.V. Shetty are heading it. They have highlighted various schemes formulated by the Government for the welfare of ex-serviceman, the widows, soldiers, but merely formulating these schemes as published in souvenir on the flag day is not enough. The very fact that the petitioners in these writ petitions are still craving for relief and their relentless efforts have yielded no result bears testimony to dereliction of statutory duty cast on the concerned officials/authorities. Such inaction and non-performance of such statutory duty by the respondents has generated a cause of action for the petitioners to invoke writ jurisdiction of this Court.

20. Mrs. Elizabeth - Additional Government Pleader referring to the counter filed by the Government submits that the State of Karnataka after serious consideration tried its best to implement the

directions issued by this Court in W.P.No.47443/2011 (KLR-RES) and connected writ petitions and had directed the concerned Deputy Commissioners and other Officers to examine the applications submitted by ex-service men, soldiers and other persons coming in the category for grant of land. On such verification, they found applications submitted by the petitioners in W.P.No.47443/2011 and other petitions did not meet the eligibility criteria. The Tahsildar concerned and other Revenue Officers have submitted detailed report on each application to bring out that except four applicants, others were ineligible. Four eligible applicants have been granted lands and in that regard a detailed order has been passed on 05.09.2013 vide No.LND 2 338/2011-12, copy of which is produced today. She would further submit, though at the first look, the averments in the petitions may appear supporting claim of each petitioner, but petitioners in these petitions have not established their eligibility for grant of land. For instance, she submits, the provisions of Rule 97(4) of the Karnataka Land

Revenue Rules, 1966 as also Rule 108(i) has been amended by the State Government consequent to which a person whose gross annual income exceeds Rupees two lakhs will not be eligible for grant of land. Besides, lands coming within the limits of City and Town Municipalities shall not be granted to any individual or private Institutions except for public purpose. She submits, in this regard, an order has been passed by the Government vide G.O. RD 74 LGP 2005 dated 24.12.2005 to comply with the repealed provision of Rule 97(4). She would submit, in view of the Government Order referred to above, if the land is gomai land, gayarana land or goathan land, it could not be granted. It is also her case that provisions of Rules 4, 5 and 12 of the Land Grant Rules, 1969 requires conditions enumerated therein shall be satisfied. On this basis, it is urged the applications submitted by the petitioners in these writ petitions are without any supporting material and therefore, relief sought cannot be granted.

21. In paragraph 10 of the report, submitted by and on behalf of the Government, I find there is a mention that 36 servicemen who were awarded with service medals and gallantry awards of Beigum District opted for cash award and 3 ex-service men from Bijapur who are the awardees of service medal, instead of land sought cash award. Similarly, it is also stated on behalf of the Government that 6 servicemen who were awardees of service medals have opted for cash instead of and in Mysore, 19 ex-servicemen satisfied their claim by accepting cash. The only reference regarding grant of land to awardee is in the case of Colonel Vasanth who was awarded Ashoka Chakra. It is material to note even though Smt. Subhashini, wife of Colonel Vasanth had applied for grant of land being part of the Ashoka chakra to her husband, the Government had failed to honour the commitment and in fact her plea was pending consideration for a long time. It is only after several interim orders were passed in these writ petitions directing the Secretary of the Revenue Department

and other Officers to explain as to why the applications submitted by her for grant of land was not considered, the Government has activated itself to process her application. The very fact that during pendency of this writ petition, the Government has passed an order on 18.02.2014 vide Annexure - R-1 to grant 5 acres of land to Smt. Subhashini speaks of the fact that the Government has failed to act on its own except when compelled by judicial orders.

22. I have also noticed from the averments in the counter filed by the Government, in pursuance to interim orders passed in these writ petitions, the State Government has constituted a committee vide G.O.No.R.D.No.95/IG/2014 dated 19.03.2014 (Annexure- R-2) under the Chairmanship of the Divisional Commissioner, Belgaum to simplify the rules and procedures to process the applications of ex-service men seeking grant of land in the State of Karnataka. This is a welcome development. Though it is after the interim order was passed in the writ

petition, yet it is appreciable that the Government has shown interest to gear up its machinery to address the grievance of ex-service men like the petitioners in these writ petitions. Smt. Elizabeth assures this Court that the Committee would embark on its function immediately and will examine all pending applications. However, while assuring the Court, the Government seems to be finding excuse referring to the impending election as a reason for not expediting action. *Be that as it may*, from the stand taken by the Government, it is evident no ground worthy of acceptance is urged to show why the applications submitted by the petitioners and similarly placed persons has not received its attention and as to why the officers concerned have failed to process the applications.

23. More than one Government Advocates has appeared in these writ petitions and at their instance, several adjournments were granted from the month of January 2014 till the month of July 2014. Except assuring the Court of prompt action, I find no action in

the right earnest is taken by the respondents. Smt. Elizabeth would submit the delay is not attributable to the officers concerned but it is due to the conduct of the petitioners themselves. She submits most of the petitioners have not satisfied the eligibility criteria as stated in earlier paragraphs of this order. Besides, she has raised additional ground of defence that though lands were identified in the Hassan District, no allotment could be made as the land so identified has since been reserved for public purpose and therefore based on priority the claim of the petitioners stand no chance. From such submission, it is apparent the State having highlighted several beneficial schemes framed by it for the welfare of service personnel is now putting up volte-face to rescind from its commitment taking refuge of the repealed provisions of Rule 97(4) and 108 of the Karnataka Land Revenue Rules, 1966.

24. Therefore, conspectus of the provisions of the Karnataka Land Revenue Act, 1964, the Rules

made thereunder and other sub-ordinate legislation is necessary. Section 71 of the Karnataka Land Revenue Act, Rule 3, 4, 5 and 6 of the Karnataka Land Grant Rules, 1969 are relevant provisions.

Section 71 - Lands may be assigned for special purposes and when assigned, shall not be otherwise used without sanction of the Deputy Commissioner

Subject to the general orders of the State Government, Survey Officers, whilst survey operations are proceeding under this Act, and at any other time, the Deputy Commissioner, may set apart lands, which are the property of the State Government and not in the lawful occupation of any person or aggregate of persons in any village or portions of a village, for free pasturage for the village cattle, for forest reserves or for any other public purpose; and lands assigned specially for any such purpose shall not be otherwise used without the sanction of the Deputy Commissioner; and in the disposal of lands under section 69 due regard shall be had to all such special assignments.

Karnataka Land Grant Rules, 1969

Rule 3. Preparation and publication of list of lands available for disposal:--

- (1) For determining the lands available for disposal in any village the Tahsildar of the Taluk shall prepare a list of lands which have been or have to be assigned for special purposes under ⁴[Section 71 of the Act and the lands which have been classified as belonging to category C and D by the Department of Agriculture] ⁵[Unoccupied lands other than lands classified as belonging to categories C and D by the Department of

Agriculture] fit for cultivation remaining after reserving sufficient extent for the aforesaid special purposes, shall be included in the list of lands available for disposal.

(2) Such lists in so far as they relate to all the villages in a Taluk shall be notified in the Taluk office and so far as they relate to each village shall be notified in the Chavadi of the village and the Office of the ²[Grama Panchayat]. The list relating to each village shall be available for inspection with the concerned Village Accountant.

(3) Every list shall be prepared, revised and brought up to date each year and notified not later than the 1st day of July of that year.

Rule 4. Persons eligible for grant of land for agricultural purposes:--

(1) Lands available for disposal may be granted for agricultural purposes under these rules to a person.

(i) who has attained the age of eighteen; and

[(ii) whose gross annual income does not exceed rupees eight thousand; and.]

(iii) who is either a bona fide agriculturist cultivating the land personally or has bona fide intention to take up personal cultivation; and

(iv) Who is not a sufficient holder;

²[Provided that in the case of Ex-servicemen and Soldiers, lands may be granted, if the gross annual income of the

applicant ²[exceed Rupees eight thousand but less than ¹⁰[rupees twenty thousand]].

Provided further that the extent of land granted to any person shall not together with the land already held by such person exceed the limits prescribed for a sufficient holder in rule 2 (15).]

(2) Notwithstanding anything contained in sub-rule (1) any person may be granted the land adjacent or close to the land already held by him on collection of market value as on the date of grant to be determined by the authority granting the land, if such land is, in the opinion of such authority required for better enjoyment or better cultivation of the land so held:

Provided that no such grant shall be made of an extent exceeding in the case of wet or garden land half hectare and in the case of dry land one hectare and that the total extent of land after such grant does not exceed the ceiling area according to the Karnataka Land Reforms Act, 1961.

Rule 5. Reservations:--

(1) The land available for disposal in any village shall be granted observing the reservation indicated below:-

- (i) Ex-Servicemen and ... 10 per cent
Soldiers
- (ii) Persons belonging to ... 50 per cent

Scheduled Castes and
Scheduled tribes

- | | | |
|---------|---------------------|---------------|
| [(ii-a) | Backward Tribes | 5 per cent] |
| (iii) | Political sufferers | 10 per cent] |
| (iv) | Others | [25 per cent] |

(2) Where the extent reserved under (ii) and (iii) is in excess of the extent that can be granted to the persons belonging to those categories, the excess land shall with the approval of the Deputy Commissioner be disposed of among persons in category (iv).

¹²Explanation: "Backward Tribes" means, the Backward Tribes as mentioned in the list appended to the Government Order No. SWL. 12 TBS 77 dated 22nd February, 1977].

(3) Notwithstanding anything in sub-rule (1), where the land available for disposal in village is less than four hectares, the whole of such land shall be disposed of to persons belonging to the Scheduled Castes and Scheduled Tribes who are ordinarily residents of such village or who reside in the neighbouring village and where no persons belonging to Scheduled castes and Scheduled Tribes apply, it shall be disposed of to others.

5-A. Lands disposed of to Scheduled Castes and Scheduled Tribes in a Taluk to be not less than fifty per cent:--

Where, in any Taluk, the total extent of lands disposed of from the date of commencement of these rules till the date of commencement of the Karnataka Land

Grant (Amendment Rules, 1979, to persons belonging to Scheduled Castes and Scheduled Tribes is less than fifty per cent of the lands which were available for disposal in the Taluk during that period then until such disposal reaches such percentage for the taluk, the percentage of reservation of lands in each village in the taluk shall be ¹³[five per cent for the purpose of item (i) of sub-rule (1) of Rule 5 in respect of ex-servicemen and soldiers, seventy five per cent for the purpose of item (ii) of the said sub-rule in respect of persons belonging to Scheduled Castes and Scheduled Tribes, five per cent for the purpose of item (iii) of the said sub-rule in respect of political sufferers and ten per cent for the purpose of item (iv) of the said sub-rule in respect of others].

Rule 6. Order of priority:--

In disposing of land among persons belonging to category (iv) of sub-rule (1) of Rule 5, the following order of priority shall be observed,-

- (i) landless persons residing in the village;
- (ii) insufficient holders residing in the village;
- (iii) landless persons residing in other villages in the same or adjacent Taluk;
- (iv) Others:

Provided that when Government directs under Section 71 of the Act that any particular area Government land shall be reserved for grant to displaced persons and tenants affected by any Government

¹⁴[x x x] Project, provisions of rule 5 and 6 will not apply.

25. The provision of Section 71 of Karnataka Land Revenue Act, is explicit in its terminology that subject to the general orders of the State Government, available land within the territorial jurisdiction of the particular village (District) may be set apart for any public purpose for free pasturage for the village cattle, for forest reserves or for any other public purpose; and lands assigned specially for any such purpose shall not be otherwise used without the sanction of the Deputy Commissioner; and in the disposal of lands under Section 69 due regard shall be had to all such special assignments.

26. The mandate in Section 71 requires identification of lands for setting apart for the purpose indicated therein and once it is so set apart it shall not be used for any other purpose. It is material to note in Hassan District, the Deputy Commissioner, in exercise of power conferred by Section 71, passed an order reserving 5,499.37 acres of land in Sakleshpur and other Taluks of the Hassan District for the purpose of grant to ex-servicemen and soldiers etc., as envisaged in the

Karnataka Grant Rules, 1969, as is evident from the following Notifications dated 02.05.1972 & 03.05.1972.

The purpose for which it is set apart is clearly indicated in the notification which reads :

1. Notification dated 2nd May 1972 :

No.LND.II.237/71-72. It is hereby notified under Section 71 of the Mysore Land Revenue Act, 1964 that out of 170 acres 21 guntas (One hundred seventy acres and twenty one guntas) of Government waste lands fit for cultivation available for disposal in the village of 'Hassan Taluk' specified in the Annexure is reserved for being granted to the ex-service men and soldiers.

List of lands Reserved for Military persons and soldiers in Hassan Taluk.

2. Notification dated 3rd May 1972 :

No.LND.II.237/71-72. It is hereby notified under Section 71 of the Mysore Land Revenue Act, 1964, that an extent of 238 acres 18 guntas (Two hundred Thirty eight acres and eighteen guntas) of Government waste lands fit for cultivation, available for disposal in the village of "ARAKALGUD TALUK" specified in the annexure is reserved for being granted to the Ex-Servicemen and Soldiers.

List of lands reserved for Military persons and soldiers in Arakalgud Taluk.

3. Notification dated 2nd May 1972 :

No.LND.II.237/71-72. It is hereby notified under Section 71 of the Mysore Land Revenue Act, 1964, that an extent of 368 acres 7 guntas (Three hundred sixty eight

acres and seven guntas) of Government waste lands fit for cultivation, available for disposal in the villages of "Holenarasipur Taluk" specified in the annexure is reserved for being granted to the Ex-Servicemen and Soldiers.

Land available for disposal and reserved for Ex-servicemen and servicemen in Holenarasipur Taluk.

4. Notification dated 2nd May 1972 :

No.LND.II.237/71-72. It is hereby notified under Section 71 of the Mysore Land Revenue Act, 1964, that an extent of 2567 acres 28 guntas (Two thousand Five hundred Sixty Seven acres and Twenty Eight guntas) of Government waste lands fit for cultivation, available for disposal in the village of Belur Taluk specified in the annexure is reserved for being granted to the Ex-Servicemen and Soldiers.

List showing the Lands Reserved for Reservation to Ex-Servicemen and Soldiers in Belur Taluk.

5. Notification dated 3rd May 1972 :

No.LND.II.237/71-72. It is hereby notified under Section 71 of the Mysore Land Revenue Act, 1964, that an extent of 5499 acres 39 guntas (Five thousand Four hundred Ninety Nine acres and Thirty Nine guntas) of Government waste lands fit for cultivation, available for disposal in the villages of "SAKLESPUR TALUK" specified in the annexure is reserved for being granted to the Ex-Servicemen and Soldiers.

List of Land to be reserved for being granted to the Ex-Servicemen and soldiers in Saklespur Taluk.

27. Thus, the notification dated 02.05.1972 and 03.05.1972 dispels all doubts and puts to rest all contentions to the contrary. As the land has been set apart by the Deputy Commissioner in exercise of the power conferred by Section 71 of the Mysore Land Revenue Act, 1964 (Karnataka Land Revenue Act, 1964), for grant of land to the military personnel and ex-servicemen and soldiers as indicated in the notification, it had to be used for that purpose.

28. The contention today is contrary to the notification referred to supra. The submission is thus discounted. In the resultant position, the entire extent of 5,499.37 acres lands in Hassan District shall deemed to be for grant to the ex-servicemen and soldiers. Consequently, the order passed by the Government dated 05.09.2013 describing the petitioners named in the said order as ineligible on the basis that subsequent to notification dated 02.05.1972 the land has now been

declared not available for grant to ex-servicemen and soldiers is wholly unsustainable.

29. Besides the clear mandate in the provisions of Rule 3, 4, 5 and 6 of the Karnataka Land Grant Rules, 1969, does not permit such arbitrary decision. Rule 3 requires preparation and publication of list of lands available for disposal and to do so, the Tahsildar of the Taluk shall prepare a list of lands which have been or have to be assigned for a special purposes under Section 71.

30. Rule 4 refers to persons eligible for grant of land for agricultural purposes and spells out that the lands available for disposal may be granted for agricultural purposes to any person who has attained the age of 18 years, whose gross annual income does not exceed Rs.8,000/- who is either a bonafide agriculturist cultivating the land personally or has bonafide intention to take up personal cultivation; and who is not a sufficient holder. The proviso to sub-rule iv of Rule 4 envisages in case of ex-servicemen and soldiers, lands may be granted, if the gross annual income of the applicant exceeds Rs.8,000/- but less than Rs.20,000/-. This has been further amended

by the Government and the limit of gross annual income is increased to Rs.2,00,000/- (Rupees two lakhs only). This Rule does not apply to the awardees.

31. Rule 5 is of relevance. It postulates the land available for disposal shall be granted observing the reservation indicated in the rule. Ex-servicemen and soldiers are listed at Sl.No.1. The Rule requires 10% of the available land shall be reserved for the purpose of grant to them. Rule 6-A specifies the priority and brings within its ambit ex-service men and the soldiers.

32. Thus, there is no gain saying that the petitioners are ineligible for grant of land under the provisions of the Karnataka Land Revenue Act, 1964 and the Karnataka Land Grant Rules, 1969. It must further be noticed that though this Court by its order dated 13.07.2012 directed the respondents in these writ petitions to consider the applications submitted by the petitioners in Writ Petition No. 47443/2011 (KLR-RES) and connected writ petitions, the Government has granted land only to 4 of the petitioners and for no valid reasons rejected the claim of others by its order dated

05.09.2013. I have perused the said order. In the preamble to the order there is a reference to the order of this Court but the text of the order of the Government dated 13.07.2012 would show there is absolutely no compliance to the order of this Court dated 13.07.2012 in Writ petition No.47443/2011 and the connected writ petitions.

33. The factual matrix manifesting from the grounds in the writ petitions, various Government Orders and the defence urged by the State, shows no pragmatic and honest approach by the respondents in considering the applications submitted by the petitioners under benevolent provisions of the Karnataka Land Revenue Act, 1964, the Rules made thereunder and the Karnataka Land Grant Rules, 1969. Consequent to discriminatory act of the respondents, while erratic grants are made in favour of other individuals, the ex-defense service personnel have been deprived of the benefit. The Order dated 05.09.2013 No.LMD 2 338/2011-12 of the Deputy Commissioner, Hassan (presently in office) being in defiance to the order of this Court dated 13.07.2012 passed in the batch of writ petitions No.47443/2011 is

quashed. The Deputy Commissioner concerned is directed to comply with the said order and reexamine the eligibility of those applications and of the petitioners in these writ petitions in the light of the provisions referred to above.

34. This direction shall not affect the land granted to four applicants as indicated in the said order and the process of granting them land shall reach the logical end.

35. In the backdrop of what has transpired and discussed in the paragraphs supra, the writ petitions are examined individually.

In W.P.No.26700/2013 :

36. Sri. H.N. Jaya Kumar, the petitioner in W.P.No.26700/2013 is a former soldier of the Border Security Force. He is a native of Hassan District and has applied to the Respondent No.2 on 25.02.2012 vide Annexure-D for grant of 10 acres of land in Sakslehspur Taluk, Hassan District out of 5499.39 acres of land notified as reserved for grant to ex-servicemen and soldiers vide Gazette Notification No.03.05.1972 vide Annexure-C. His application has been forwarded to respondent No.2 on 29.2.2012 vide Annexure-E. Despite submission of such

application, the respondents have not considered it. His grievance is that the lands have already been identified and reserved for grant to the ex-service men and soldiers, but the respondents have declined to grant the request. He has also referred to the order referred by this Court in batch of Writ Petition Nos.47443/2011 (KLR-RES) dated 13.7.2012 (Annexure-F) directing respondents to consider the applications submitted by the ex-servicemen. He seeks grant of 10 acres of land in survey No.80 of Hethur village of Sakleshpur Taluk, Hassan District which is one of the lands notified as reserved to ex-servicemen vide Annexure-C dated 03.05.1972.

37. I am satisfied that the grievance is justified and there shall be a direction to the respondents to consider his application.

In W.P.No.2023/2014 :

38. This Writ petition is filed by Sri. G. Krishnamurthy, who retired as a Hawaldar having served for 21 years in the Armed Force. He has been discharged from service on 09.06.1971. He submitted his application to the second respondent which was forwarded to the 4th respondent. The 4th respondent

has, after examining his eligibility, recommended grant of land. Despite such recommendatory note and eligibility of the petitioner, the land has not been granted to him. He has sought land in survey No.26 of Malegondahalli village. The annexures to the writ petition would show relentless efforts of the petitioner to secure the grant. His application vide Annexure-G was forwarded to the 2nd respondent by the 4th respondent through letter dated 17.11.2012 - annexure-F.

39. It is clear from Deputy Commissioner's letter dated 06.09.2012, the Tahsildar was directed to consider the claim of the petitioner and submit a report. The Tahsildar in turn directed the Nadakacheri Sarjapur to verify records. But there is no response from the authorities. Be that as it may, it is clear that the land in question is a Government land available for grant.

40. In the circumstances, respondents are directed to consider the application of the petitioner vide Annexure-G.

In W.P.NO.7000/2014 :

41. The petitioner Sri. Harshavardhan in W.P.No.7000/2014 is a soldier of the Indian Army and claims he is a landless individual entitled to the land in terms of provisions of Land Grant Rules, 1969. He applied to the 2nd respondent through proper channel for grant of land vide his application dated 08.01.2007 vide Annexure-C. The application was forwarded to the authorities vide Annexure-D. In further action, he has produced Darkhast application to the 5th respondent 26.05.2007 vide Annexure-E. The respondent No.5 forwarded his application to the 3rd respondent. The 4th respondent has conducted spot inspection recommending grant of land to him. The respondent No.3 on receipt of such report from the subordinate officers sought certain clarifications from the petitioner which he has furnished. The 4th respondent acting on the instructions of the 5th

respondent, directed the Revenue Inspector to verify and submit a report in terms of memo. The Revenue Inspector filed a detailed report dated 10.07.2008 vide Annexure-F recommending grant of 6.80 cents land to the petitioner. On receipt of such recommendatory note, the 5th respondent has forwarded it to the 4th respondent through his letter dated 23.7.2008 favouring petitioner's case. Copy of it is at Annexure-G. Again there is further action in forwarding the records by the 4th respondent to the 3rd respondent on 08.08.2008. The 3rd respondent has also favourably considered his application and forwarded it to the 2nd respondent on 8.10.2009 for necessary action vide Annexure-H. The 2nd respondent on receipt of such recommendatory notes and records has forwarded it to the 1st respondent State through letter dated 11.04.2011 vide Annexure-J. Despite such favourable actions by the respondents i.e., Tahsildar, Assistant Commissioner, Deputy Commissioner and the Regional Commissioner, the first respondent - State

Government has failed to pass an order. He has also made out a case for issuances of direction to the respondent- State to accept the recommendations of respondents 2 to 5 and pass appropriate orders to grant land to him in terms of his request. Thus the 1st respondent is directed to consider petitioners' applications, accept recommendation of the Deputy Commissioner.

In W.P.No.33080/2013 :

42. Sri. L. Kumar - the petitioner in Writ Petition No.33080/2013 is a soldier of the Indian Army having retired from the service in the year 1989. He filed application for grant of land in Survey No.8 of Sulikere village in the year 1998 through Sainik Welfare Re-settlement Board, Bangalore. As his application was not considered, he was in writ action before this court in Writ petition No.20058/2009 which was allowed in his favour directing the respondents to consider his application. In response to such direction of this Court, the respondents issued an endorsement expressing



ineligibility to grant land to the petitioner which he questioned in Writ Petition No.21709/2010. This Court by Writ of Certiorari quashed the endorsement and directed respondents to consider his applications. Again there was inaction compelling the petitioner to take further writ action in Writ Petition No.5716/2011. That Writ petition was disposed of in his favour on 26.07.2012 directing the respondents to consider his application expeditiously within the outer limit of six months. Even that order was not complied with compelling him to initiate action for contempt of Court in CCC.No.182/2013. That petition has been disposed of by this Court reserving liberty to the petitioner to file fresh contempt if the action is not taken by the respondents vide order dated 01.04.2013. Again he was in action in CCC.No.786/2013 which was also disposed of accepting the 3rd respondent's submission through his letter dated 28.3.2013 that he will consider the application of the petitioner. The grievance of the petitioner is, despite such undertaking, the respondent No.3 has not considered

his application. He is one such aggrieved ex-servicemen whose request for grant of land is pending from the year 1998. He has sought for grant of land in Sulikere village measuring 4 acres. Learned Government Advocate submits the land sought for, falls within 18 kms from the city limit, thus cannot be granted. But there is no reason why his application for grant of land in any of the survey numbers in the said district cannot be considered. It needs to be clarified, when application is filed seeking grant of land in any particular survey number, if the land in such survey number is either not available or cannot be granted because of certain other restrictions, the authorities are required to verify the availability of land in other survey number which are not hit by such restrictions for the purpose of grant of land. Merely endorsing that the land applied cannot be granted is no valid reason for not considering the request for grant of land in question. In the circumstances, the respondents are directed to consider the application of the petitioner for grant of land in any of the other



survey number in the Bangalore Rural District, if the land applied for is not available.

In W.P.No.37425/2013 :

43. The petitioner Sri. Anand Rao in Writ Petition No.37425/2013 (KLRA) served in Indian Air Force as Sergeant from 1966 to 1986 and has since been retired. He participated in Indo-Pak war and was awarded Sangram Medal. In the year 2009 he filed darkhast in form No.1 for grant of land in survey No.9 measuring 1.25 acres of land in Thimmarasanahalli village which was rejected by the Deputy Commissioner vide Annexure-K referring to the Government Circular vide Annexure-J. In view of the judgment of this Court reported in ILR 1989 (1) KAR page 60 that by way of circulars or otherwise the Government cannot nullify the provisions of the Land Revenue Act and Land Grant Rules, the petitioner has questioned the endorsement. The material propositions in the pleadings would show that his application has been favourably considered and recommended by the Tahsildar and the Assistant

Commissioner for grant of land to him. Despite such recommendation, the Deputy Commissioner, who is second respondent herein, has issued an endorsement declining to grant land. Annexures appended to the writ petition would show, the Tahsildar has obtained report from the Revenue Inspector and village accountant on the availability of land for grant and by his report dated 17.05.2012 (Annexure-F) has forwarded it to the Assistant Commissioner recommending the grant. The Assistant Commissioner in his report dated 3.7.2012 (Annexure-G) has also recommended grant of land to the Petitioner. Mahazar dated 21.07.2010 has also been drawn vide Annexure-H. The Deputy Commissioner, despite such clear reports of both the officers, has declined to grant land referring to the Government Circular No.KE 32 Praka/2010 dated 31.07.2010 (Annexure-J) issued by the Secretary to the Government, Department of Revenue not to grant land if it is declared gomal land. Based on it, the order has been passed in LND (NA):CR:55/2011-12

dated 20.03.2013 rejecting his application vide Annexure-K. It is quite evident from the order passed by the Deputy Commissioner dated 20.03.2013 (Annexure-K) that he has rejected application of the petitioner based on the circular, which this Court speaking through its judgment reported in ILR 1989 (1) KAR page 60 held under Rule 5 and 6 of the Land Grant Rules 1969 lands needs to be identified, reserved and allotted as mandated in the statute and such statutory mandate cannot be annulled by circulars issued by the Government.

44. I am satisfied, as issue is well settled by the judicial pronouncement, the order passed by the Deputy Commissioner - 2nd respondent Annexure-K rejecting application of the petitioner only on the basis of circular dated 31.07.2010 is unsustainable. Hence by writ of certiorari the order vide Annexure-A rejecting the application of the petitioner is quashed and the 2nd respondent is directed to consider application of the petitioner afresh taking into

consideration the recommendations of the Tahsildar, Assistant Commissioner and other officers.

In W.P.No.46878/2013 :

45. Smt. Madevi, petitioner in W.P.No.46878/2013 is a widow of H.D. Rangaiah who died intestate leaving behind him her wife - the petitioner and a daughter. He served Indian Army in the Madras Regiment as Sepoy from 14.5.1947 till 09.09.1966. He died on 12.07.1992. After his demise, the petitioner along with his daughter Smt. Manjula being his legal heirs were admitted to family pension and are held entitled to all benefits of service and other benefits. The petitioner and her daughter applied to the authorities through Sainik Welfare Department for grant of land under the provisions of the Karnataka Land Revenue Act. Their representation to the Ministry of Defense Kendriya Sainik Board, was forwarded on 11.05.2011 to the Sainik Welfare and Resettlement Board at Bangalore vide Annexure-D. In the follow-up action the Sainik Welfare and Resettlement Board of Karnataka on

receipt of recommendation from the Ministry of Defense vide Annexure-D forwarded it to the second respondent vide Annexure-E. The grievance of the petitioner is, the authorities have failed to consider her application for grant of land in survey No.73 measuring 1 acre 14 guntas of Uttanahalli village and Survey No.25 measuring 24 guntas of Maranayakanahalli village, Jala Hobli, Bangalore North Taluk. She claims she is in possession and unauthorized cultivation of the land. Her application dated 27.09.2012 is at Annexure-H. Thereafter, she approached the officers in hierarchy for redressal and the Chief Secretary to the Government of Karnataka accepting her request directed the second respondent to verify her records and do the needful vide Annexure-G. The 3rd respondent has collected further records from the Revenue Department and opined that the petitioner could be granted land under the ex-servicemen quota and sent a report dated 11.04.2012 at Annexure-H. Based on Annexure-H, the 2nd respondent has sent detailed report to the

Chief Secretary to the Government showing availability of the land in survey No.73 measuring 1 acre 14 guntas of Uttanahalli village and survey No.25 measuring 24 guntas of Maranayakanahalli village. The 2nd respondent has also confirmed in his correspondence that there is no objection from the villagers to grant land to the petitioner and also that there is no application in form No.50 and 53 (applications under Section 94-A or 94-B of the Karnataka Land Revenue Act, 1964) pending consideration from any person. Despite such recommendation from the competent authority i.e. Deputy Commissioner, the Government has failed to pass an order. Thus she is in writ action.

46. On perusal of the material propositions in the writ petition, I am satisfied that the petitioner Madevi has substantiated her entitlement for allotment of land on two counts. One is by virtue of her husband being ex-servicemen under the provisions of Rule 5 of the Karnataka Land Grant

Rules, 1969 and also under the provisions of Section 94-A or 94-B of the Karnataka Land Revenue Act, 1964 which permits regularization of unauthorized occupation and cultivation of land by the cultivator. There is no dispute she is in unauthorized occupation and cultivation of Government land. It has been confirmed by the Revenue authorities and thus even on this ground she should be entitled for regularization of her occupation to the extent of land in her occupation.

47. I am satisfied that the petitioner has made out a case to grant land in terms of her application either under the provisions of Rule 5 of Karnataka Land Grant Rules from the quota of Ex-servicemen reserved for that purpose or under the provisions of Section 94-A or 94-B of the Karnataka Land Revenue Act, 1964.

In W.P.No.56331/2013 :

48. Smt. Vanajakshi - the petitioner in W.P.No.56331/2013 is a widow of B.M. Ramakrishna

who served Indian Army as Lance Naik. He was discharged from service after the period more than seven years. He died in the year 1999. His wife applied for grant of land from out of land reserved as per Government Notification dated 2/3.5.1972 - Annexure-C to be granted to ex-servicemen and soldiers. In this regard, she has further revealed that her husband Ramakrishna before his death on 26.07.1999 had applied to respondents through his commandant for a grant of land in survey No.6 measuring 12 acres and 2 guntas situate in Honakaravally village, Kunaganahalli post, Alur Taluk, Hassan District. However upon his death, his wife - the petitioner continued to request. She has also submitted an application on her behalf on 03.08.1998 vide Annexure-C. The application has been forwarded by the Deputy Director, Sainik Welfare and Resettlement Board, Madikeri, through his note dated 18.09.1998 - Annexure-D. Despite such factual aspects, the 4th respondent has declined to grant her land on the premise that no land is available. The

endorsement - Annexure-E is impugned in this Writ Petition. I am satisfied the endorsement Annexure-E dated 10.12.1998 is wholly unsustainable as the land sought for by the petitioner is within the territorial limits of Hassan district where more than 5000 acres of land has been reserved to be granted to ex-servicemen and soldiers etc. as detailed in the notification dated 02/03.05.1972 Annexure-C. Thus the writ petition is allowed quashing the endorsement Annexure-E. Respondents are directed to process petitioner's application and grant her land from the land reserved in Hassan district or any other suitable land.

49. In terms of the above directions, the above referred writ petitions are allowed as prayed for in terms of the order in each of the writ petitions. With this preclude about the individual grievance, we shall now consider the grievance of service personnel/legal heirs of deceased service personnel who were recipients of various service medals and awards.

50. The statistical information furnished by Principal Secretary to the Government, Revenue Department and the statistical information submitted by Director and Deputy Director of Sainik Welfare and Resettlement Board brings to surface the fact that though several persons from the State of Karnataka are recipients of such awards, neither the State Government nor the Director of Sainik Welfare and Resettlement Board have ensured that the benefit of land reaches them. A feeble defence of the Advocates on behalf of the State is that the awardees opted to receive cash in lieu of the land. During the course of hearing, I had the benefit of hearing some of the applicants who brought out that there was no voluntary giving up of claim by them to receive cash award instead of land. I have no reason to disbelieve the statement that they were prevailed upon and persuaded by the authorities to receive cash in lieu of the land. They succumbed to such undue influence resulting deprival of actual benefit which they are entitled to get. At this juncture, the learned

Government Advocate would submit, most of the awardees have voluntarily sought cash award as they could not satisfy their eligibility criteria for grant of agricultural land. I am dismayed at this submission. From several writ petitions moved before this Court, we can notice, despite clear direction of this Court to consider the applications for grant of land by the ex-service men and other personnel, the Deputy Commissioners concerned, have, for one or other unacceptable reason defied the directions. From the inconsistent ground urged by the State and the respondents, it is evident, the respondents have, for unjustifiable reason, deprived statutory benefits to the applicants and to overcome such lapses have taken the general defence of ineligibility. Be that as it may, the eligibility criteria prescribed by Rule 4 particularly the ceiling limit based on income; the prescription of reservation by Rule 5 to an extent of 10% for ex-service men and soldiers and the order of priority prescribed under Rule 6 and further saving clause in the proviso to Rule 6 is not applicable to the

applicants who are awardees. They are entitled to as a matter of right the benefit of awards which includes grant of land and this right is indefeasible. It is regrettable that the respondents have frustrated the very object of grant of the award to the service personnel rendering the entire process a mocking formality than a reality. This, in law is wholly unacceptable. The disdainful conduct of the respondents in avoiding to comply with the orders of this Court passed in earlier writ petitions, on the grounds which are wholly untenable, compels me to bind the respondents with specific directions to avoid recurrence of such lapses.

51. In the circumstances, while disposing of these writ petitions and to avoid any further deprivation of statutory benefits to the persons like the petitioners, following directions are issued:

DIRECTIONS

1. The Deputy Commissioners of all the districts shall direct survey of lands by the officers concerned as envisaged in Rules 3 and 4 of the

Land Grant Rules, 1969 and then identify lands in each village within their territorial jurisdiction for the purpose of grant to the ex-servicemen and soldiers and notify it as envisaged under, Section 71 of the Karnataka Land Revenue Act, 1964, within a period of six months from the date of receipt of a copy of this order.

2. Copy of such notification shall be forwarded to the Director, Sainik Welfare and Resettlement Board, who, shall publish it in its office and such other places as is accessible to the service personnel.
3. If in any such district agricultural land is not available, then the Deputy Commissioner shall identify revenue land for the purpose of grant in lieu of agricultural land.
4. The Deputy Commissioners shall maintain a register incorporating therein the details of applications submitted by ex-servicemen and soldiers for such grant.
5. Ex-servicemen and soldiers; the legal heirs of war casualties and such other persons who come in this category may apply for grant of land directly to the Deputy Commissioners of the concerned district with a copy of it marked to the Director, Sainik Welfare and Resettlement Board, Karnataka. The Director, Sainik Welfare and

Resettlement Board shall be the nodal agency who, shall, after receipt of the copy of such application, register in his office and maintain record of it. It shall pursue the application with concerned authorities following the instructions issued by the Government vide Circular No.RD 33 LGP 83 of June 1983.

6. It shall be the duty of the Sainik Welfare and Resettlement Board not only to receive and forward the applications but to assist the applicants in pursuing the application for grant of land till it reaches logical end.
7. All the applications received by the Deputy Commissioners shall be examined on its merit and shall be considered for grant of land within the outer limit of six months from the date of its filing/submission. All applications pending consideration till this date shall be considered and disposed of within three months from the date of receipt of copy of this order.
8. No application shall be rejected without hearing the applicant or assigning any valid reason. Non-availability of land in any particular village applied for shall not be a reason for rejecting the application.
9. In case applicant seeks land in any particular survey number of any particular village, the

same shall be considered for allotment and in the event of such land being not available, then the concerned Deputy Commissioners shall consider grant of land situate in any other village in same district.

10. In the event of agricultural land being not available in the district applied for, then the application shall be considered for allotment of land in any other district and concerned Deputy Commissioner shall recommend to the first respondent to consider grant of land in any other district or a house site to the applicant as assured to this court in these writ petitions.

11. The Principal Secretary, Department of Revenue, Government of Karnataka shall ensure that such sites are allotted by the authorities namely, 1) The Additional Chief Secretary, Urban Development Department, 2) The Secretary, Urban Development Department & 3) The Commissioner, Karnataka Housing Board, Kaveri Bhavan, as indicated in the letter dated RD 282 LGX 2013 dated 11.07.2014 filed in Writ Petition No.26700/2013 and connected matters. The benefit shall be extended to the applicants who are recipients of gallantry awards, service medals, cash awards, annuity etc.

12. In the case of applicants who are recipients of service medals, gallantry awards and those who are conferred with certificate of recognition of service shall be entitled to all benefits as declared in the award including land or land sites, cash award, annuity etc. The restrictions imposed by Rule 4, particularly ceiling limit based on the income stipulating eligibility criteria for purposes of grant of land; the prescription of 10% reservation under Rule 5; the prescription of order of priority by Rule 6 and the restrictions indicated in proviso to Rule 6 of Karnataka Land Grant Rules, 1969 shall not apply to them. They will be entitled to grant of land, land sites on priority and their applications shall be considered as expeditiously as possible and in any circumstance, but not beyond the period of six months from the date of receipt of such applications. The applicants in this category shall be entitled to allotment in the district to which they belong or in any other district where they have settled or intend to settle.

13. The District Sainik Welfare and Resettlement Board shall maintain record of all service personnel who have been awarded service medals, gallantry awards, year-wise and shall publish the same annually by the end of

each year and forward it to the Principal Secretary, Revenue Department, Government of Karnataka for needful action.

14. The directions issued in individual writ petitions as detailed in paragraphs supra shall be complied by the respondents **within the period of six months** from the date of receipt of this order and the general directions issued hereby shall be complied as expeditiously as possible **but not beyond the period of one year** from the date of receipt of a copy of this order.

52. The Writ Petitions are disposed of in terms of the directions mentioned above.

53. Mrs. Elizabeth, learned Government Advocate is permitted to file her memo of appearance.

54. Rule Nisi issued is made absolute. However, there shall be no order as to costs.

**Sd/-
JUDGE**

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ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಸಂಖ್ಯೆ: ಆರ್‌ಡಿ 22 ಎಲ್‌ಜಿಪಿ 2019

ಕರ್ನಾಟಕ ಸರ್ಕಾರ ಸಚಿವಾಲಯ,
ಬಹುಮಹಡಿಗಳ ಕಟ್ಟಡ,
ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 24.06.2021.

ಸುತ್ತೋಲೆ

ವಿಷಯ: ಸ್ಥಾನಿಕ / ಮಾಜಿ ಸ್ಥಾನಿಕರುಗಳಿಗೆ ವ್ಯವಸಾಯದ ಉದ್ದೇಶಗಳಿಗಾಗಿ ಸರ್ಕಾರಿ ಜಮೀನನ್ನು ಮಂಜೂರು ಮಾಡುವ ಕುರಿತು.

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ಸ್ಥಾನಿಕ/ಮಾಜಿ ಸ್ಥಾನಿಕರುಗಳಿಗೆ ಭೂಮಿ ಮಂಜೂರು ಮಾಡುವಲ್ಲಿ ನಿರ್ಲಕ್ಷ್ಯ ವಹಿಸುತ್ತಿರುವ ಬಗ್ಗೆ ಹಾಗೂ ಇಂತಹ ಅನೇಕ ಪ್ರಕರಣಗಳು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಛೇರಿಯಲ್ಲಿ ಬಾಕಿ ಇರುವುದರಿಂದ ಕೆಲವು ಅರ್ಜಿದಾರರುಗಳು ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮೊಕದ್ದಮೆಗಳನ್ನು ದಾಖಲಿಸಿರುತ್ತಾರೆ ಹಾಗೂ ಇಂತಹ ಬಹಳಷ್ಟು ಪ್ರಕರಣಗಳು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಛೇರಿಯಲ್ಲಿ ಬಾಕಿ ಉಳಿದಿರುವುದನ್ನು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯವು ಗಂಭೀರವಾಗಿ ಗಮನಿಸಿರುತ್ತದೆ.

ಕರ್ನಾಟಕ ಭೂ ಮಂಜೂರಾತಿ ನಿಯಮಗಳು, 1969 ರ ನಿಯಮ 5(1)(ಎ) ರಲ್ಲಿ ಯಾವುದೇ ಗ್ರಾಮದಲ್ಲಿ ವಿಲೇ ಮಾಡಲು ಲಭ್ಯವಾಗುವ ಜಮೀನಿನನ್ನು ಸ್ಥಾನಿಕ/ಮಾಜಿ ಸ್ಥಾನಿಕರಿಗೆ ಮೀಸಲಿಡಲು ಅವಕಾಶ ಕಲ್ಪಿಸಲಾಗಿದೆ.

ಕರ್ನಾಟಕ ಭೂ ಮಂಜೂರಾತಿ ನಿಯಮಗಳು, 1969 ರ ನಿಯಮ 8(8) ರಲ್ಲಿ ಮಾಜಿ ಸ್ಥಾನಿಕ ಅಥವಾ ಸ್ಥಾನಿಕ ನಿಯಮ 4 ರ ಉಪ ನಿಯಮ (1) ರಲ್ಲಿ ನಿರ್ದಿಷ್ಟಪಡಿಸಿದಂತೆ ವಾರ್ಷಿಕ ಆದಾಯ ಮಿತಿಗೆ ಒಳಪಟ್ಟು ಭೂ ಮಂಜೂರಾತಿಗೆ ಅರ್ಹನಾಗಿರುತ್ತಾನೆ. ಅವರು ತಮ್ಮ ಸೇವಾ ಪುಸ್ತಕದಲ್ಲಿ ನಮೂದಿಸಿರುವಂತೆ ಸ್ಥಳೀಯ ತಾಲ್ಲೂಕಿನ ತಹಶೀಲ್ದಾರರಿಗೆ ನಮೂನೆ 1-ಎ ನಲ್ಲಿ ಭೂ ಮಂಜೂರಾತಿಗಾಗಿ ಅರ್ಜಿ ಸಲ್ಲಿಸತಕ್ಕದ್ದು. ಎಲ್ಲಾ ಅರ್ಜಿಗಳನ್ನು ತಹಶೀಲ್ದಾರರವರು ಒಂದು ವಹಿಯಲ್ಲಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ ದಿನಾಂಕದ ಜೇಷ್ಠತೆಯಂತೆ ದಾಖಲಿಸತಕ್ಕದ್ದು. ಹಾಗೂ ಅದೇ ಜೇಷ್ಠತೆ ಆಧಾರದಲ್ಲಿ ಮಂಜೂರಾತಿಗೆ ಕಡ್ಡಾಯವಾಗಿ ಕ್ರಮವಹಿಸತಕ್ಕದ್ದು.

ಕರ್ನಾಟಕ ಭೂ ಮಂಜೂರಾತಿ ನಿಯಮಗಳು, 1969 ರ ನಿಯಮ 4 ರಲ್ಲಿ ಯುದ್ಧದಲ್ಲಿ ಮಡಿದ ಮತ್ತು ಯುದ್ಧದಲ್ಲಿ ಸಂಭವಿಸಿದ ಹಾಗೂ ಸಂಪೂರ್ಣವಾಗಿ ಅಂಗವಿಕಲರಾದ ಸ್ಥಾನಿಕರ ಪತ್ನಿಗೆ ಅಥವಾ ಅವಲಂಬಿತರ ಅರ್ಜಿದಾರರುಗಳಿಗೆ ಭೂಮಿಯ ಮಂಜೂರಾತಿಗೆ ವರಮಾನದ ಪರಿಮಿತಿ ಇರತಕ್ಕದ್ದಲ್ಲ. ಸೇನಾ ಸೇವೆಯಲ್ಲಿದ್ದವರ ಮತ್ತು ಸ್ಥಾನಿಕರ ಸಂದರ್ಭದಲ್ಲಿ ಅರ್ಜಿದಾರನ ಒಟ್ಟು ವಾರ್ಷಿಕ ವರಮಾನವು 8.00 ಲಕ್ಷ ರೂಪಾಯಿಗಳನ್ನು ಮೀರದಿದ್ದಲ್ಲಿ, ಭೂಮಿಯನ್ನು ಮಂಜೂರು ಮಾಡಲು ಅವಕಾಶ ಕಲ್ಪಿಸಲಾಗಿದೆ. ಸ್ಥಾನಿಕ ಕಾರ್ಯಾಚರಣೆಯಲ್ಲಿ ಮಡಿದ ಯೋಧನ ಪತ್ನಿ ಮತ್ತು ಅವರ ಅವಲಂಬಿತರಿಗೆ ಮತ್ತು ಸೇನಾ ಕಾರ್ಯಾಚರಣೆಯಲ್ಲಿ ಸಂಪೂರ್ಣ ಅಂಗವೈಕಲ್ಯತೆಗೆ ತುತ್ತಾದವರಿಗೆ ಪ್ರಥಮ ಪ್ರಾಶಸ್ತ್ಯ ನೀಡತಕ್ಕದ್ದು. ಹಾಗೂ ಸದರಿ ನಿಯಮ 12(5) ರಲ್ಲಿ ಸ್ಥಾನಿಕರು/ಮಾಜಿ ಸ್ಥಾನಿಕರಿಗೆ ಉಚಿತವಾಗಿ ಭೂಮಿಯನ್ನು ಮಂಜೂರು ಮಾಡಲು ಅವಕಾಶ ಕಲ್ಪಿಸಲಾಗಿದೆ.

ಕರ್ನಾಟಕ ಭೂ ಮಂಜೂರಾತಿ ನಿಯಮಗಳು, 1969 ರ ನಿಯಮ 7(1) ರಲ್ಲಿ ಈ ಕೆಳಕಂಡ ವಿಸ್ತೀರ್ಣ ಹಾಗೂ ವರ್ಗೀಕರಣದ ಜಮೀನುಗಳನ್ನು ಮಂಜೂರು ಮಾಡಲು ಜಿಲ್ಲಾಧಿಕಾರಿಯವರಿಗೆ ಅಧಿಕಾರವಿದೆ.

- > ವ್ಯವಸಾಯದ ಉದ್ದೇಶಕ್ಕೆ ಸದ್ದದ ಹಿಡುವಳಿಗಳನ್ನೊಳಗೊಂಡು ಎರಡು ಹೆಕ್ಟೇರ್ ಮುಷಿ, ಭೂಮಿ ಮತ್ತು ಒಂದು ಹೆಕ್ಟೇರ್ ತರಿ ಭೂಮಿ ಅಥವಾ ಬಾಗಾಯ್ತು ಭೂಮಿ.
- > ಪ್ಲಾಂಟೇಷನ್ ಬೆಳೆಗಳ ಸಾಗುವಳಿ ಉದ್ದೇಶಕ್ಕಾಗಿ ಸದ್ದದ ಹಿಡುವಳಿಯನ್ನೊಳಗೊಂಡು ಎರಡು ಹೆಕ್ಟೇರ್ ಭೂಮಿ.

> ಕೃಷಿಯೇತರ ಉದ್ಯೋಗಕ್ಕೆ (ಕಟ್ಟಡ ನಿರ್ಮಾಣ ಹೊರತುಪಡಿಸಿ) ಅರ್ಧ ಹೆಕ್ಟೇರ್ ಭೂಮಿ.

ಭೂ ಮಂಜೂರಾತಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮೇಲ್ಕಂಡಂತೆ ನಿಯಮಗಳಲ್ಲಿ ಅವಕಾಶಗಳಿದ್ದರೂ ಸಹ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಛೇರಿಯಲ್ಲಿ ಸ್ಥಾನಿಕ/ಮಾಜಿ ಸ್ಥಾನಿಕರಿಗೆ ಮಂಜೂರಾತಿ ಪ್ರಸ್ತಾವನೆಯನ್ನು ಅನಗತ್ಯವಾಗಿ ವಿಳಂಬ ಮಾಡುತ್ತಿರುವುದರಿಂದ ಅರ್ಜಿದಾರರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಅರ್ಜಿ ದಾಖಲಿಸುತ್ತಿದ್ದು, ಈ ಸಂಬಂಧ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯವು ನೀಡಿರುವ ಆದೇಶಗಳನ್ನು ನಿಗದಿತ ಅವಧಿಯಲ್ಲಿ ಕ್ರಮವಹಿಸದೇ ಇರುವುದರಿಂದ ಅರ್ಜಿದಾರರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ನ್ಯಾಯಾಂಗ ನಿಂದನಾ ಪ್ರಕರಣಗಳನ್ನು ದಾಖಲಿಸುತ್ತಿದ್ದು, ಇದರಿಂದಾಗಿ ಸರ್ಕಾರದ ಅಪರ ಮುಖ್ಯ ಕಾರ್ಯದರ್ಶಿಗಳು/ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಮುಂದೆ ಹಾಜರಾಗುವ ಪರಿಸ್ಥಿತಿಗಳು ಎದುರಾಗುತ್ತಿದೆ. ಆದ್ದರಿಂದ, ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ಇನ್ನು ಮುಂದೆ ಇಂತಹ ಪ್ರಸ್ತಾವನೆಗಳನ್ನು ನಿಯಮಾನುಸಾರ ಪರಿಶೀಲಿಸಿ, ವಿಳಂಬಕ್ಕೆ ಆಸ್ಪದವಿಲ್ಲದೇ ತಮ್ಮ ಹಂತದಲ್ಲಿಯೇ ಅಗತ್ಯ ಕ್ರಮವಹಿಸತಕ್ಕದ್ದು ಹಾಗೂ ಅವಶ್ಯಕತೆ ಇದ್ದಲ್ಲಿ ಮಾತ್ರ ಸರ್ಕಾರಕ್ಕೆ ಪ್ರಸ್ತಾವನೆಯನ್ನು ಸಲ್ಲಿಸುವುದು.

ಸ್ಥಾನಿಕ/ಮಾಜಿ ಸ್ಥಾನಿಕರಿಂದ ಭೂ ಮಂಜೂರಾತಿಗಾಗಿ ಈಗಾಗಲೇ ಸ್ವೀಕರಿಸಿರುವ ಅರ್ಜಿಗಳನ್ನು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಹಂತದಲ್ಲಿಯೇ ನಿಯಮಾನುಸಾರ ಪರಿಶೀಲಿಸಿ ಮೂರು ತಿಂಗಳೊಳಗಾಗಿ ಇತ್ಯರ್ಥಪಡಿಸತಕ್ಕದ್ದು ಹಾಗೂ ಹೊಸದಾಗಿ ಸ್ವೀಕರಿಸುವ ಅರ್ಜಿಗಳನ್ನು ಆರು ತಿಂಗಳೊಳಗಾಗಿ ಇತ್ಯರ್ಥಪಡಿಸಿ, ಅರ್ಜಿದಾರರಿಗೆ ಸೂಕ್ತವಾದ ಮಾಹಿತಿಯನ್ನು ನೀಡತಕ್ಕದ್ದು.

ಮುಂದುವರಿದು, ಸ್ಥಾನಿಕ/ಮಾಜಿ ಸ್ಥಾನಿಕರಿಗೆ ಭೂ ಮಂಜೂರಾತಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ದಾಖಲಾಗಿದ್ದ ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ: 48872/2019 ರ ಪ್ರಕರಣದಲ್ಲಿ ದಿನಾಂಕ: 06.11.2019 ರ ದೈನಂದಿನ ಆದೇಶದಲ್ಲಿ ಈಗಾಗಲೇ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ: 26700/2013 ರ ಪ್ರಕರಣದಲ್ಲಿ ದಿನಾಂಕ: 25.08.2014 ರಂದು ನೀಡಿರುವ ಆದೇಶವನ್ನು ಕಟ್ಟು ನಿಟ್ಟಾಗಿ ಪಾಲಿಸುವಂತೆ ನಿರ್ದೇಶನ ನೀಡಿರುತ್ತದೆ.

ಆದ್ದರಿಂದ, ಸ್ಥಾನಿಕ/ಮಾಜಿ ಸ್ಥಾನಿಕರಿಗೆ ಭೂ ಮಂಜೂರಾತಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ದಾಖಲಾಗಿರುವ ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ: 26700/2013 ರ ಪ್ರಕರಣದಲ್ಲಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯವು ನೀಡಿರುವ ಆದೇಶದ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಈ ಕೆಳಕಂಡ ಕ್ರಮಗಳನ್ನು ತಕ್ಷಣದಿಂದಲೇ ಜರೂರಾಗಿ ಕೈಗೊಳ್ಳುವಂತೆ ಸರ್ಕಾರದ ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ: ಆರಾಡಿ 241 ಎಲ್‌ಜಿಪಿ 2016; ದಿನಾಂಕ: 19.11.2016 ರ ಸುತ್ತೋಲೆಯಲ್ಲಿ ಸೂಚನೆ ನೀಡಲಾಗಿರುತ್ತದೆ.

> ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ಮಂಜೂರಾತಿಗೆ ಸೂಕ್ತವಾಗಿರುವ ಜಮೀನುಗಳನ್ನು ತಮ್ಮ ವ್ಯಾಪ್ತಿಯಲ್ಲಿ ಗುರುತಿಸಿ, ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ಕಾಯ್ದೆ, 1964 ರ ಕಲಂ 71 ರಡಿ ಅಧಿಸೂಚಿಸುವುದು;

> ಈ ಅಧಿಸೂಚನೆಯ ಪ್ರತಿಯನ್ನು ನಿರ್ದೇಶಕರು, ಸ್ಥಾನಿಕ ಕಲ್ಯಾಣ ಮತ್ತು ಪುನರ್ವಸತಿ ಇಲಾಖೆರವರಿಗೆ ನೀಡತಕ್ಕದ್ದು; ಈ ಅಧಿಸೂಚನೆಯನ್ನು ನಿರ್ದೇಶಕರು ತಮ್ಮ ಕಛೇರಿ ಹಾಗೂ ಜಿಲ್ಲಾ ಮಟ್ಟದ ಕಛೇರಿಗಳಲ್ಲಿ ಮಾಜಿ ಸ್ಥಾನಿಕರು ಮತ್ತು ಯೋಧರ ಗಮನಕ್ಕೆ ತರಲು ಪ್ರಕಟಿಸತಕ್ಕದ್ದು;

> ಯಾವುದಾದರೂ ಜಿಲ್ಲೆಯಲ್ಲಿ ಕೃಷಿಯೋಗ್ಯ ಭೂಮಿ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳಿಗೆ ದೊರಕದಿದ್ದಲ್ಲಿ, ಅವರು ಮಂಜೂರಾತಿಗೆ ಸೂಕ್ತವಾಗಿರುವ ಕಂದಾಯ ಭೂಮಿಯನ್ನು ಗುರುತಿಸತಕ್ಕದ್ದು;

(3)

- > ಪ್ರತಿ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಛೇರಿಯಲ್ಲಿ ಜಮೀನು ಮಂಜೂರಾತಿಗಾಗಿ ಮಾಜಿ ಸೈನಿಕರು ಮತ್ತು ಯೋಧರು ದಾಖಲಿಸಿರುವ ಅರ್ಜಿಗಳ ವಹಿಯನ್ನು ನಿರ್ವಹಿಸತಕ್ಕದ್ದು.
- > ಮಾಜಿ ಸೈನಿಕರು ಮತ್ತು ಯೋಧರು ಅಥವಾ ಅವರು ಹಕ್ಕುದಾರರು ಭೂ ಮಂಜೂರಾತಿಗೆ ಅರ್ಹರಿದ್ದಲ್ಲಿ ಭೂ ಮಂಜೂರಾತಿಗಾಗಿ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳಿಗೆ ನೇರವಾಗಿ ಅರ್ಜಿ ಸಲ್ಲಿಸತಕ್ಕದ್ದು ಹಾಗೂ ಇದರ ಪ್ರತಿಯನ್ನು ನಿರ್ದೇಶಕರು, ಸೈನಿಕ ಕಲ್ಯಾಣ ಮತ್ತು ಪುನರ್ವಸತಿ ಇಲಾಖೆಗೆ ಸಲ್ಲಿಸತಕ್ಕದ್ದು. ನಿರ್ದೇಶಕರು, ಸೈನಿಕ ಕಲ್ಯಾಣ ಮತ್ತು ಪುನರ್ವಸತಿ ಇಲಾಖೆಯವರು ನೋಡಲ್ ಐಜೆನ್ನಿಯಾಗಿದ್ದು ಈ ಅರ್ಜಿಗಳನ್ನು ತಮ್ಮ ಕಛೇರಿಯಲ್ಲಿ ದಾಖಲಿಸತಕ್ಕದ್ದು ಹಾಗೂ ಸರ್ಕಾರಿ ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ:ಆರ್‌ಡಿ 33 ಎಲ್ ಜಿಪಿ 1983; ಜೂನ್ 1983 ರ ಸೂಚನೆಗಳನ್ವಯ ಸದರಿ ಅರ್ಜಿಗಳು ವಿಲೇವಾರಿಯಾಗುವವರೆಗೂ ಸಂಬಂಧಿಸಿದ ಕಛೇರಿಗಳಲ್ಲಿ ವ್ಯವಹರಿಸಿ ಸೈನಿಕ/ಮಾಜಿ ಸೈನಿಕರಿಗೆ ಸಹಾಯ ಮಾಡತಕ್ಕದ್ದು.
- > ಅರ್ಜಿದಾರರ ಮನವಿಯನ್ನು ಖುದ್ದಾಗಿ ವಿಚಾರಿಸದೇ ಅರ್ಜಿಯನ್ನು ವಿಲೇ ಮಾಡತಕ್ಕದ್ದಲ್ಲ. ಅರ್ಜಿದಾರರು ಜಮೀನು ಮಂಜೂರಾತಿಗಾಗಿ ಕೋರಿರುವ ಸರ್ವೆ ನಂಬರನಲ್ಲಿ ಜಮೀನು ಲಭ್ಯವಿಲ್ಲದೇ ಇದ್ದಲ್ಲಿ ಅದೇ ಗ್ರಾಮದ ಇತರ ಸರ್ವೆ ನಂಬರ ಅಥವಾ ಬೇರೆ ಗ್ರಾಮದ ಇತರ ಸರ್ವೆ ನಂಬರ ಅಥವಾ ಬೇರೆ ಗ್ರಾಮದಲ್ಲಿ ಜಮೀನು ಮಂಜೂರು ಮಾಡಲು ಕ್ರಮವಹಿಸತಕ್ಕದ್ದು.
- > ಜಮೀನು ಮಂಜೂರಾತಿಗೆ ಕೋರಿರುವ ಜಮೀನು ಆ ಜಿಲ್ಲೆಯಲ್ಲಿ ಲಭ್ಯವಿಲ್ಲದೇ ಇದ್ದಲ್ಲಿ ಪಕ್ಕದ ಜಿಲ್ಲೆಗೆ ಅರ್ಜಿದಾರರ ಅರ್ಜಿಯನ್ನು ವರ್ಗಾಯಿಸತಕ್ಕದ್ದು.
- > ಸೇವಾ ಪದಕ ಶೌರ್ಯ ಪ್ರಶಸ್ತಿ ಹಾಗೂ ಸೇವಾವಧಿಯಲ್ಲಿ ಗುರುತರವಾದ ಸಾಧನೆಗೆ ಪಡೆದಿರುವ ಪ್ರಶಸ್ತಿ ಪತ್ರಗಳನ್ನು ಹೊಂದಿರುವ ಯೋಧರ ಸಹ ಜಮೀನು/ನಿವೇಶನ/ ನಗದು ಇತ್ಯಾದಿಗಳಿಗೆ ಅರ್ಹರಾಗಿದ್ದು ಅಂತಹವರಿಗೆ ಕರ್ನಾಟಕ ಭೂ ಮಂಜೂರಾತಿ ನಿಯಮಗಳು 1969 ರ ನಿಯಮಗಳಾದ 4.5.6 ರಲ್ಲಿರುವ ಕೆಲವು ನಿಬಂಧನೆಗಳು ಅನ್ವಯವಾಗುವುದಿಲ್ಲ. ಇಂತಹ ವಕರಣಗಳನ್ನು ಆದ್ಯತೆಯ ಮೇಲೆ ಪರಿಗಣಿಸಬೇಕಾಗುತ್ತದೆ.
- > ಜಿಲ್ಲಾ ಸೈನಿಕ ಕಲ್ಯಾಣ ಮತ್ತು ಪುನರ್ವಸತಿ ಕೇಂದ್ರದವರು ಸೇವಾ ಪದಕ, ಶೌರ್ಯ ಪ್ರಶಸ್ತಿ ಹಾಗೂ ಸೇವಾವಧಿಯಲ್ಲಿ ಗುರುತರ ಸಾಧನೆಗೆ ಪಡೆದಿರುವ ಪ್ರಶಸ್ತಿ ಪತ್ರಗಳ ಯೋಧರ ಪಟ್ಟಿಯನ್ನು ವರ್ಷವಾರು ತಯಾರಿಸಿ ಪತ್ರಿ ವರ್ಷವು ಪ್ರಕಟಿಸಬೇಕು ಹಾಗೂ ಇದರ ಪ್ರತಿಯನ್ನು ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು ಕಂದಾಯ ಇಲಾಖೆ, ಕರ್ನಾಟಕ ಸರ್ಕಾರದವರಿಗೆ ಮುಂದಿನ ಕ್ರಮಕ್ಕಾಗಿ ಕಳುಹಿಸತಕ್ಕದ್ದು.

ಸೈನಿಕ/ಮಾಜಿ ಸೈನಿಕರಿಗೆ ಭೂ ಮಂಜೂರಾತಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ: 26700/2013 ರ ಪ್ರಕರಣದಲ್ಲಿ ದಿನಾಂಕ: 25.08.2014 ರಂದು ನೀಡಿರುವ ಆದೇಶವನ್ನು ಕಟ್ಟುನಿಟ್ಟಾಗಿ ಪಾಲಿಸುವಂತೆ ನಿರ್ದೇಶನ ನೀಡಿರುವ ಆದೇಶಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಈಗಾಗಲೇ ಹೊರಡಿಸಿರುವ ಸರ್ಕಾರದ ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ: ಆರ್‌ಡಿ 241 ಎಲ್‌ಜಿಪಿ 2016; ದಿನಾಂಕ: 19.11.2016 ರ ಸುತ್ತೋಲೆಯಲ್ಲಿನ ಸೂಚನೆಗಳನ್ನು ಕಟ್ಟುನಿಟ್ಟಾಗಿ ಪಾಲಿಸತಕ್ಕದ್ದು ಹಾಗೂ ಈ ಕಾರ್ಯದಲ್ಲಿ ಯಾವುದೇ ದೂರುಗಳಿಗೆ



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ಅಸ್ತವ್ಯ ನೋಡದಂತೆ ಸಂಪೂರ್ಣ ವಾರದರ್ಚಕತೆಯನ್ನು ಪಾಲಿಸತಕ್ಕದ್ದು. ಯಾವುದೇ ಅಧಿಕಾರಿ/ನೌಕರರ ಲೋಪವನ್ನು ಸರ್ಕಾರವು ತೀವ್ರ ಗಂಭೀರವಾಗಿ ಪರಿಗಣಿಸಲಾಗುವುದೆಂದು ಹಾಗೂ ಅವರ ವಿರುದ್ಧ ನಿಯಮಾನುಸಾರ ಶಿಸ್ತು ಕ್ರಮ ಜರುಗಿಸಲಾಗುವುದೆಂದು ಈ ಮೂಲಕ ತಿಳಿಸಿದೆ.

(ಎನ್.ಮಂಜುನಾಥ ಪ್ರಸಾದ್) 29/4/2021
ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ,
ಕಂದಾಯ ಇಲಾಖೆ

ಇವರಿಗೆ:

1. ಎಲ್ಲಾ ಪ್ರಾದೇಶಿಕ ಅಯುಕ್ತರು.
2. ಎಲ್ಲಾ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು.
3. ಅಯುಕ್ತರು, ಭೂಮಾಪನ ಇಲಾಖೆ & ಪದನಿಮಿತ್ತ ನಿರ್ದೇಶಕರು, ಭೂಮಿ ಉಸ್ತುವಾರಿ ಕೋಶ.
4. ಎಲ್ಲಾ ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು (ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಮುಖಾಂತರ).
5. ಎಲ್ಲಾ ತಹಶೀಲ್ದಾರ್‌ಗಳು (ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಮುಖಾಂತರ).

ಪ್ರತಿಯನ್ನು:

1. ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಯವರ ಆಪ್ತ ಕಾರ್ಯದರ್ಶಿ, ಕಂದಾಯ ಇಲಾಖೆ, ಬಹುಮಹಡಿ ಕಟ್ಟಡ, ಬೆಂಗಳೂರು.
2. ಸರ್ಕಾರದ ಉಪ ಕಾರ್ಯದರ್ಶಿಯವರ ಆಪ್ತ ಸಹಾಯಕಿ, ಕಂದಾಯ ಇಲಾಖೆ (ಭೂ ಮಂಜೂರಾತಿ & ಭೂ ಸುಧಾರಣೆ) ಬಹುಮಹಡಿ ಕಟ್ಟಡ, ಬೆಂಗಳೂರು.
3. ಸರ್ಕಾರದ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿ, ಕಂದಾಯ ಇಲಾಖೆ (ಭೂ ಮಂಜೂರಾತಿ-1 & 3).
4. ಪೀಠಾಧಿಕಾರಿ, ಕಂದಾಯ ಇಲಾಖೆ (ಭೂ ಮಂಜೂರಾತಿ-2).
5. ಶಾಖಾ ರಕ್ಷಾ ಕಡತ/ಹೆಚ್ಚುವರಿ ಪ್ರತಿಗಳು.

THIS IS THE DOCUMENT REFERRED TO
AS ANNEXURE..... AFFIDAVIT OF
Smt Smt.....

NOTARY

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ANNEXURE-D

Form-1A

[See sub rule(8) of rule 8]

Application to be submitted by the soldier/ex. serviceman for grant of land for purpose of agriculture.

SL.No	Particulars	Information to be furnished
01	Name of the soldier/Ex-Serviceman	SUBHAS ANNASAHEB POL
02	Name of Father/Mother	ANNASAHEB. GAIBI POL VIMALA ANNASAHEB POL
03	Age as per the service record	
04	Name of the widow of the soldier or dependent of such soldier who deceased in the military operation	
05	Name of soldier who completely disabled in the military operation	
06	Name of the Defence force in which serving/served	THE MADRAS REGT-PIN-901 56. APO. (A/P)
07	Present Rank/Rank last held	HAV
08	Service Number	2602745 W
09	Date of joining the service	15/05/1998
10	Date of discharge from service[Ex-Service man]	22 yrs 10 Days.
11	Number of years service rendered	
12	Details of gallantry awards if any	CHINCHALI POST, Tal-Raibag Dist-Belgaon - 591217
13	Full address	
14	Native village and district. as per service register	CHINCHALI - Belgaon
15	Purpose of land grant	AGRICULTURE-PURPOSE
16	Extent of land sought for grant	02 HEC 05 ACRE
17	Place where the land is situated [Sy.no/village/Hobli/Taluk/District]	S.NO. 67 & 73 NASALAPUR & 190 BSA Tal-Raibag Dist-Belgaon

18	If the applicant possessed own land in the State or outside, then furnish the full details of such land [State/District/Taluk/Hobli/Village/Sy. No/Extent/type of land]	- NO -
19	If any land granted earlier under Soldier /ex-Serviceman quota, then furnish the details of such land [State/District/Taluk/Hobli/Village/Sy. No/Extent/type of land]	- NO -
20	If the applicant or his family members are the agriculturist, yhen furnish information	- NO -
21	Annual income of the applicant [Furnish the certified copy] By salary/pension and other sources]	ATTACHED.
22	Any other information applicants wants to furnish	- NO -

Place:- Belgavi^o -

Date:-

Signature of the applicant

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**TYPED COPY OF ANNEXURE-D****FORM-1A****[See-sub rule(8) of rule 8]**

Application to be submitted by the soldiers/ serviceman for grant of land for purpose of agriculture.

Sl.No.	Particulars	Information to be furnished
01	Name of the soldier/Ex-serviceman	SUBHAS ANNASAHEB POL
02	Name of father/Mother	ANNASAHEB GAIBI POL VIMALA ANNASHEB POL
03	Age as per the service record	Age:57, D.O.B:01.06.1964
04	Name of the widows of the soldier or Dependent of such soldier who deceased In the military operation	-
05	Name of soldier who completely disabled In the military operation	NIL
06	Name of the defence force in which serving/ Served	THE MADRAS REGT-PIN 900458 C/O. 56APO
07	Present Rank/Rank last held	HAV
08	Service Number	2602745W
09	Date of joining the service	15.05.1998
10	Date of discharge from Service [EX-Service Man]	30.04.2021
11	Number of years service rendered	22 years 10 days
12	Details of gallantry awards if any	----
13	Full address	Chinchali post, Tal- Raibag Dist-Belagavi-591217.
14	Native village and district as per service Register	Chinchali-Belagavi

- 15 Purpose of land grant AGRICULTURE PURPOSE
- 16 Extent of land sought for grant 02 HEC 05 ACRES
- 17 Place When The Land Is Situated SY.NO. 67 & 73 NASLAOPUR &
[Sy. no/village/ Hobli/ Taluk/District] 190 Savadatti Tq:Raibag, Dist: Belagavi.
- 18 If the applicant possessed own land in the state or outside then furnish the full details of such land. NIL
[State/District/Taluk/ Hobli/ village/Sy.No.1 type of land] NIL
- 19 If any land granted earlier under Soldier Ex-Serviceman quota then furnish details of such land NIL
[State/District/Taluk/ Hobli/ village/Sy.No.1 type of land] NIL
- 20 If the applicant or his family members are the Agriculturist then furnish information NO
- 21 Annual income of the applicant [furnish the Certificate copy] by salary pension and other Sources ATTACHED
- 22 Any other information applicant wants to Furnish

Place: Belagavi

Date: 04.12.2021

signature of the applicant



ಸುಭಾಷ ಅಣ್ಣಾಸಾಹೇಬ ಪೋಳೆ

ಮಾಜಿ ಸೈನಿಕರು.

ಸಾಕೀನ: ಬಸ್ ಸ್ಟಾಂಡ್ ಹತ್ತಿರ, ಚಿಂಚಲಿ-591217

ತಾಲ್ಲೂಕು: ರಾಯಬಾಗ, ಜಿಲ್ಲೆ: ಬೆಳಗಾವಿ,

ಕರ್ನಾಟಕ ರಾಜ್ಯ.

ಇವರಿಗೆ,

ಮಾನ್ಯ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು,

ಜಿಲ್ಲಾಧಿಕಾರಿಗಳವರ ಕಾರ್ಯಾಲಯ, ಬೆಳಗಾವಿ.

ಜಿಲ್ಲೆ: ಬೆಳಗಾವಿ.

ವಿಷಯ: ಸೈನಿಕ/ ಮಾಜಿ ಸೈನಿಕರುಗಳಿಗೆ ವ್ಯವಸಾಯ ಉದ್ದೇಶಗಳಿಗಾಗಿ
ಸರ್ಕಾರಿ ಜಮೀನಿನವನ್ನು ಮಂಜೂರು ಮಾಡುವ ಕುರಿತು.

ಮಾನ್ಯರೇ,

ಈ ಮೇಲ್ಕಾಣಿಸಿದ ವಿಷಯದನ್ವಯ ಈ ಕೆಳಗೆ ಸಹಿ ಮಾಡಿರುವ ನಾನು, ಸುಭಾಷ ಅಣ್ಣಾಸಾಹೇಬ ಪೋಳೆ, ಮಾಜಿ ಸೈನಿಕರು, ಸಾಕೀನ: ಚಿಂಚಲಿ, ತಾಲ್ಲೂಕು: ರಾಯಬಾಗ, ಜಿಲ್ಲೆ: ಬೆಳಗಾವಿ, ತಮ್ಮ ಆದ್ಯ ಗಮನಕ್ಕೆ ತಂದು ಈ ಮೂಲಕ ಬರೆದುಕೊಡುವ ವಿನಂತಿ ಅರ್ಜಿ ಏನೆಂದರೆ,

ನಾನು, ಭಾರತೀಯ ಸೈನಿಕದಲ್ಲಿ ಸುಮಾರು 23 ವರ್ಷಗಳವರೆಗೆ ಸೇವೆ ಸಲ್ಲಿಸಿ, ಈಗ ನಿವೃತ್ತಿ ಹೊಂದಿರುತ್ತೇನೆ. ಮಾಜಿ ಸೈನಿಕರಿಗೆ ಜಮೀನಿನವನ್ನು ಮಂಜೂರು ಮಾಡಲು ಮಾನ್ಯ ಕರ್ನಾಟಕ ಸರ್ಕಾರದವರು ಹೊರಡಿಸಿದ, ಸರಕಾರದ ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ: ಆರ್.ಡಿ.22.ಎಲ್.ಜಿ.ಪಿ. 2019 ನೇದ್ದರ ಪ್ರಕಾರ ಆದೇಶ ಹೊರಡಿಸಿದ್ದು ಇರುತ್ತದೆ. ನನ್ನ ಹೆಸರಿನಿಂದ ಮತ್ತು ನಮ್ಮ ಕುಟುಂಬ ಸದಸ್ಯರ ಹೆಸರಿಗೆ ಚಿಂಚಲಿ ಗ್ರಾಮದಲ್ಲಾಗಲೀ ಅಥವಾ ಬೇರೆ ಯಾವುದೇ ಕಡೆ ಜಮೀನು ವಗೈರೆ ಹೊಂದಿರುವುದಿಲ್ಲ ಮತ್ತು ಇರುವುದಿಲ್ಲ.

ನಾನು, ಹಿಂದೂ "ಥೋರೆ" ಜಾತಿಯಲ್ಲಿ ಜನಿಸಿರುವುದರಿಂದ ನಮ್ಮ ಜಾತಿಯು "ಹಿಂದೂ ಥೋರೆ" ಇರುತ್ತದೆ ಮತ್ತು ಸದರಿ ನಮ್ಮ ಜಾತಿಯು ಪರಿಶಿಷ್ಟ ಜಾತಿ (ಎಸ್.ಸಿ) ಗುಂಪಿನಲ್ಲಿ ಬರುತ್ತದೆ.

ಆದ್ದರಿಂದ ಮಾನ್ಯರಾದ ತಾವು, ಬೆಳಗಾವಿ ಜಿಲ್ಲೆಯ ರಾಯಬಾಗ ತಾಲ್ಲೂಕಿನ ನಸಲಾಪೂರ ಗ್ರಾಮದ ಹದ್ದಿಯಲ್ಲಿ ಬರುವ ಜಮೀನು ರಿಸನಂ. 73 ಹಾಗೂ ರಿಸನಂ. 67 ಅಥವಾ ರಾಯಬಾಗ ತಾಲ್ಲೂಕಿನ ಬಾವನ ಸೌಂದತ್ತಿ ಗ್ರಾಮದ ಹದ್ದಿಯಲ್ಲಿ ಬರುವ ಜಮೀನು ರಿಸನಂ. 190, ಈ ಪ್ರಕಾರ ಮೂರು ಸರ್ವೆ ನಂಬರ ಜಮೀನುಗಳು ಇದ್ದು, ಸದರಿ ಮೇಲೆ ಹೇಳಿದ ಮೂರೂ ಸರ್ವೆ ನಂಬರ ಜಮೀನುಗಳು ಸರ್ಕಾರಿ ಜಮೀನು ಇರುತ್ತವೆ. ಈ ಮೂರೂ ಸರ್ವೆ ನಂಬರ ಜಮೀನುಗಳ ಪೈಕಿ ಯಾವುದಾದರೂ ಸರ್ವೆ ನಂಬರ ಜಮೀನಿನಲ್ಲಿ ನನ್ನ ಹೆಸರಿಗೆ 05 ಎಕರೆ 00 ಗುಂಟೆ ಜಮೀನಿನವನ್ನು ಮಂಜೂರು ಮಾಡಿಕೊಡಬೇಕು ಅಂತಾ ತಮ್ಮಲ್ಲಿ ಈ ಮೂಲಕ ಅತೀ ಕಳಕಳಿಯಿಂದ ಪ್ರಾರ್ಥಿಸಿಕೊಳ್ಳುತ್ತೇನೆ.

ಧನ್ಯವಾದಗಳೊಂದಿಗೆ,

ಸ್ಥಳ: ಚಿಂಚಲಿ

ದಿನಾಂಕ: 12/2021

ತಮ್ಮ ವಿಶ್ವಾಸಿಗಳು,

(ಸುಭಾಷ ಅಣ್ಣಾಸಾಹೇಬ ಪೋಳೆ)
ಮಾಜಿ ಸೈನಿಕರು.

ಸದರಿ ಪತ್ರದ ಪ್ರತಿಯೊಂದಿಗೆ ಈ ಕೆಳಗೆ ನಮೂದಿಸಿದ ದಾಖಲಾತಿಗಳನ್ನು ಲಗತ್ತಿಸಿದೆ.

- (1) ನಿವೃತ್ತಿ ಹೊಂದಿರುವ ಪ್ರತಿ
- (2) ಪಿಂಚಣಿ ಪಡೆಯುತ್ತಿರುವ ವೇತನ ಸ್ಲೀಪ್
- (3) ಫಾರ್ಮ್-1ಎ ರ ಪ್ರತಿ
- (4) ನಿವೃತ್ತಿ ಗುರುತಿನ ಪ್ರತಿ
- (5) ಜಾತಿ ಪ್ರಮಾಣ ಪತ್ರದ ಪ್ರತಿ
- (6) ಆಧಾರ್ ಕಾರ್ಡ್‌ನ ರೆಕಾರ್ಡ್ ಪ್ರತಿ
- (7) ಅರ್ಜಿ ಕೊರಲಾದ ಸರ್ವೆ ನಂಬರಿನ ಪಹಣಿ ಪ್ರತಿಕೆಯ ಪ್ರತಿ
- (8) ಸರಕಾರದ ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ: ಆರ್.ಡಿ.22.ಎಲ್.ಜಿ.ಪಿ. 2019 ನೇದ್ದರ ಆದೇಶದ ಪ್ರತಿ
- (9) ಸರಕಾರದ ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ: ಆರ್.ಡಿ. 06. ಎಲ್.ಜಿ.ಪಿ. 2019 ರ ಪ್ರತಿ

ಸ್ವೀಕೃತ ಸಹಾಯಕ
ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ, ಬೆಳಗಾವಿ
(22/12/21)

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ANNEXURE-F

ಗ್ರಾಮ ಪಂಚಾಯತ್ 2
ಪಾಲಿಕಾ ಮೊಹರು

1632BACE211BEC3

ರೆಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ಸ್, ಗೇಣಿ ಮತ್ತು ಪಹಣಿ ಪತ್ರಿಕೆ (RTC) ಫಾರಂ ನಂ.೦೬

Print Page No: 1/1
Valid from 11/06/2021 To Till Date
ಫಿಟವ ಕ್ರಮ ಸಂಖ್ಯೆ:

1. ಸರ್ವೆ ನಂಬರ್	3. ಮೇತುವಾರು ಎಕರೆ ಗುಂಪಿ	4. ಕಂದಾಯ ರೂ. ಪೈ.	5. ಕಬ್ಬಿ ಅಥವಾ ಸ್ವಾಧೀನದಾರರ ಹೆಸರು	6. ಸ್ವೀಕೃತಿ ಎ ಗುಂ	7. ಮಾತೆ ನಂ.	8. ಕಬ್ಬಿ ಅಥವಾ ಸ್ವಾಧೀನದಾರರ ಹೆಸರು	9. ಕಬ್ಬಿ ಅಥವಾ ಸ್ವಾಧೀನದಾರರ ಹೆಸರು	10. ಕಬ್ಬಿ ಅಥವಾ ಸ್ವಾಧೀನದಾರರ ಹೆಸರು	11. ಇತರೆ ಪಹಣಿಗಳು ಮತ್ತು ಬಯಕೆಗಳು						
73	ಒಟ್ಟು ಮೀಟರ್ ಪೂರ್ವ ಮರಾಠ್ (ಅ) ಪೂರ್ವ ಮರಾಠ್ (ಬ) ಉಳಿದದ್ದು	36.06.00.00 0.00.00.00 0.15.00.00 35.31.00.00	(ಅ) ಭೂ ಕಂದಾಯ (ಬ) ಜೋಡಿ (ಕ) ಸೆಸ್ಸುಗಳು (ಡ) ನೀರಿನ ದರ	8.95 0.00 0.00 0.00		ಗಾಯರಾಕಾ	35.31.00.00	86	(4364) (4305) (2069) (3055) (4395) ಒಟ್ಟುಗೂಡಿಸು	ಕೆ.ಭೂ.ಕಂ.ಪಾ.1964 ಕಲಂ 71 ರ ಕೆಳಗೆ ನಸಲಾಪೂರ ಗ್ರಾಮ ಪಂಚಾಯತ್‌ಗೆ 5ಎ-00ಗುಂ ಜಮೀನು ಸಾರ್ವಜನಿಕ ಪನ ಮತ್ತು ದ್ರವ ತ್ಯಾಜ್ಯ ವಿಲೇವಾರಿ ಉದ್ದೇಶಕ್ಕಾಗಿ ಶಾಯ್ಕರಿಸಲಾಗಿದೆ.					
2. ಹಿರಿಯ			ಒಟ್ಟು	8.95											
5. ಮುಕ್ತ ಸಮಾನ	7. ಮರಗಳ ಸಂಖ್ಯೆ	8. ಮೇತುವಾರು ಪ್ರಕಾರ ನೀರಾವರಿಯ ವಿಸ್ತೀರ್ಣ													
ಮರಡಿ	ಜೇಡರು	ಸಂಖ್ಯೆ	ಕ್ರ. ಸಂ.	ನೀರಾವರಿ ಮೂಲ	ಮುಂಗಾರು	ಹಿಂಗಾರು	ಬಾಗಾಯ್ತು	ಒಟ್ಟು							
6. ಪಕ್ಕಾ															
ನರಕಾರಿ															
12. ಸಾಗುವಳಿ ಮತ್ತು ಗೇಣಿಯ ವಿವರಗಳು															
ನವ ಮತ್ತು ಕಾಲ	ಪ್ರವಾಸಾಯಗಾರರ ಹೆಸರು ಮತ್ತು ವಾಸಸ್ಥಳ 2	ಸಾಗುವಳಿ ಪದ್ಧತಿ	ಮೀಟರ್ ಎ ಗುಂ 4	ಗುತ್ತಿಗೆ 5	ವರ್ಗ 6	ಮೀಟರ್ ಎ ಗುಂ 7	ಬಾಗಾಯ್ತು 8	ಬೆಳೆಯ ಹೆಸರು 9	ಅಮತ್ಯ 10	ಮಿಶ್ರ 11	ಒಟ್ಟು 12	ಮೂಲ 13	ಉತ್ಪಾದಿ 14	ಮಿಶ್ರಣದ ಹೆಸರು 15	ಮೀಟರ್ ಎ ಗುಂ 16
2021-2022 ಮುಂಗಾರು	ಗಾಯರಾಕಾ							*	0.00.00.00	0.00.00.00	0.00.00.00		0.00		

ಮೀಟರ್ ಎಕರೆ ಮತ್ತು ಗುಂಪಿಗಳಲ್ಲಿ

ದಿನಾಂಕ:30/11/2021 13:34 ಮೊಹ: ರೂ. 15

RTC DIGITALLY SIGNED BY : RAJENDRA DABBAGOL ON 6/11/2021

RTC UniqueNumber: 1632BACE211BEC3
ರೆಕಾರ್ಡ್ ಭೂಕಂದಾಯ ನಿಯಮಾವಳಿ 1966 ರ ನಿಯಮ 40, 42, 58 ಮತ್ತು 70

ಪಹಣಿಯ ನೈಜತೆಯನ್ನು <http://landrecords.karnataka.gov.in/rtcverification> ಬೆಟ್ ಸೈಟಿನಲ್ಲಿ ಅಥವಾ KA BHOOMI <RTC UniqueNumber> ಟೈಪ್ ಮಾಡಿ 161 ಗೆ ಸಂದೇಶ ಕಳುಹಿಸಿ ಪರಿಶೀಲಿಸಬಹುದು
Citizen may register their AADHAAR number and mobile number at www.landrecords.karnataka.gov.in to get SMS alerts about mutations on agricultural lands

* : ಪಳೆ ಪದ್ಧತಿ ಮಾಡಿ ಸ್ವೀಕೃತವಾಗದ ಕಾರಣ, ಪಳೆ ಮಾಡಿ ನಮೂದಿಸುವುದಿಲ್ಲ

1632BACE21008CC

ರೇಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ಸ್, ಗೇಣಿ ಮತ್ತು ಪಹಣಿ ಪತ್ರಿಕೆ (RTC) ಫಾರಂ ನಂ.01

ಗ್ರಾಮ ನಮೂನೆ 2

ಪಾಲಿಸ್ ಮತ್ತು ಮೊಹರು

ಪಾಲಿಸ್ ಮತ್ತು ಮೊಹರು

ಪಾಲಿಸ್ ಮತ್ತು ಮೊಹರು

ಪಾಲಿಸ್ ಮತ್ತು ಮೊಹರು

ಗ್ರಾಮ : ನಸಲಾಪುರ

ವೃದ್ಧ ಕ್ರಮ ಸಂಖ್ಯೆ :

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Valid from 18/03/2002 00:00:00 To Till Date

1. ಸರ್ವೆ ನಂಬರ್	3. ಪೇಯವಾರು	ಎಕರೆ ಗುಂಪಿ ಅ	4. ಕುಟುಂಬ	ರೂ. ಪೈ.	9. ಕಡ್ಡೆ ಅಥವಾ ಸ್ವಾಧೀನದಾರನ ಹೆಸರು	ವಿಸ್ತೀರ್ಣ ಎ ಗುಂ	ಮಾತೆ ನಂ.	10. ಕಡ್ಡೆ ಅಥವಾ ಸ್ವಾಧೀನದಾರನ ರೀತಿ	11. ಇತರ ಪಕ್ಕಗಳು ಮತ್ತು ಯೋಜನೆ						
67	ಒಟ್ಟು ವಿಸ್ತೀರ್ಣ ಪೂರ್ವ ಪಕ್ಕ (ಅ) ಪೂರ್ವ ಪಕ್ಕ (ಬ) ಉಳಿದದ್ದು	44.11.00.00 10.24.00.00 0.00.00.00 33.27.00.00	(ಅ) ಭೂ ಕಂದಾಯ (ಬ) ಜೋಡಿ (ಕ) ಸೆಪ್ಪುಗಳು (ಇ) ನಿಲಿತ ಪದ	8.42 0.00 0.00 0.00	ಗಾಯರಾಜ	33.27.00.00	177	(4364) (4305)							
2. ಹಿರಿಯ	*		ಒಟ್ಟು	8.42											
5. ಮಣ್ಣಿನ ನಮೂನೆ	7. ಮರಗಳ ಸಂಖ್ಯೆ	8. ಪೇಯವಾರು ಪ್ರಕಾರ ನೀರಾವರಿಯ ವಿಸ್ತೀರ್ಣ													
ಮುಸಾರಿ	ಹೆಸರು	ಸಂಖ್ಯೆ	ಕ್ರ. ಸ.	ನೀರಾವರಿ ಮೂಲ	ಮುಂಗಾರು	ಹಿಂಗಾರು	ಬಾಗಾಯ್ತು	ಒಟ್ಟು							
6. ಪಕ್ಕ															
ನರಕಾರಿ															
12. ಸಾಗುವಳಿ ಮತ್ತು ಗೇಣಿಯ ವಿವರಗಳು															
ವರ್ಷ ಮತ್ತು ಕಾಲ	ಪ್ರವಾಸಾಯೋಗದ ವಿವರ ಮತ್ತು ವಾಸಸ್ಥಳ 2	ಸಾಗುವಳಿ ಪದ್ಧತಿ	ಗೇಣಿಯ ವಿವರ	ವಿಸ್ತೀರ್ಣ ಎ ಗುಂ 4	ಗುತ್ತಿಗೆ 5	ವರ್ಗ ಎ ಗುಂ 7	ಬಾಗಾಯ್ತು	ಬೆಳೆಯ ಹೆಸರು	ಅಮತ್ಯ	ಮತ್ಯ	ಒಟ್ಟು	ಮೂಲ 13	ಉತ್ಪಾದಿ	ಮತ್ಯಾದ ಹೆಸರು	ವಿಸ್ತೀರ್ಣ ಎ ಗುಂ 16
2021-2022 ಮುಂಗಾರು	ಗಾಯರಾಜ							*	0.00.00.00	0.00.00.00	0.00.00.00		0.00		

ದಿನಾಂಕ:30/11/2021 13:32 ಮೊಹರು: ರೂ. 15

RTC DIGITALLY SIGNED BY: RAJENDRA DABBAGOL ON 7/4/2020 1

RTC UniqueNumber: 11632BACE21008CC

ಕರ್ನಾಟಕ ಭೂಕಂದಾಯ ನಿಯಮಾವಳಿ 1988 ರ ನಿಯಮ 40, 42, 58 ಮತ್ತು 70

ವಿಸ್ತೀರ್ಣ ಎಕರೆ ಮತ್ತು ಗುಂಪಿಗಳಲ್ಲಿ...

ಪಹಣಿಯ ನೈಜತೆಯನ್ನು <http://landrecords.karnataka.gov.in/rtcverification> ಬಳಿ ಸೈಟಿನಲ್ಲಿ ಅಥವಾ KA BHOOMI <RTC UniqueNumber> ಟೈಪ್ ಮಾಡಿ 161 ಗೆ ಸಂದೇಶ ಕಳುಹಿಸಿ ಪರಿಶೀಲಿಸಬಹುದು

Citizen may register their AADHAAR number and mobile number at www.landrecords.karnataka.gov.in to get SMS alerts about mutations on agricultural lands

* ಬಳಿ ಸಮೀಕ್ಷೆ ಮಾಡಿ ಸ್ವೀಕೃತವಾಗದ ಕಾರಣ, ಬಳಿ ಮಾಡಿ ಸಮೂಹಿಸಿರುವುದಿಲ್ಲ

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ANNEXURE- F-2

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Valid from 18/03/2002 00:00:00 To Till Date

ಗ್ರಾಮ ನಮೂನೆ 2

ಕಾಲಾಂಶ ಮತ್ತು ಮೊಹರು

1632BACE2141638

1632BACE2141638

ರೆಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ಸ್, ಗೇಣಿ ಮತ್ತು ಪಹಣಿ ಪತ್ರಿಕೆ (RTC) ಫಾರಂ ನಂ.02

1. ಸರ್ವೆ ನಂಬರ್	3. ಪೀಠವಾರು ಎಕರೆ ಗುಂಟೆ ಆ	4. ಕಂದಾಯ ರೂ. ಪೈ.	9. ಕಟ್ಟಡ ಅಥವಾ ಸ್ವಾಧೀನದಾರನ ಹೆಸರು	10. ಕಟ್ಟಡ ಅಥವಾ ಸ್ವಾಧೀನದಾರನ ವಿವರ	11. ಇತರೆ ಪಹಣಿಗಳು ಮತ್ತು ಯೋಜನೆ										
190	ಒಟ್ಟು ವಿಸ್ತೀರ್ಣ ಪೂರ್ವ ಖರಾಬ್ (ಅ) ಪೂರ್ವ ಖರಾಬ್ (ಬಿ) ಉಳಿದದ್ದು	22.01.00.00 1.23.00.00 0.00.00.00 20.18.00.00	(ಅ) ಭೂ ಕಂದಾಯ (ಬಿ) ಜೋಡೆ (ಕೆ) ಸಮಗ್ರ (ಡ) ನೀರಿನ ದರ	20.18.00.00 1599	5 ವರ್ಷದವರೆಗೆ ದಿನ ಮೇಯಿಸಲು ಮನಾಯಿ. ಪಿ.ಪಿ.ಆರ್.ನಂ. ಆಲಜೆಆಲ ಆನ 173										
2. ಹಿಪ್ಪಾ		ಒಟ್ಟು													
5. ಮಣ್ಣಿನ ನಮೂನೆ	7. ಮರಗಳ ಸಂಖ್ಯೆ	8. ಪೀಠವಾರು ಪ್ರಕಾರ ನೀರಾವರಿಯ ವಿಸ್ತೀರ್ಣ													
ಕಂಪ್ಯುಟರ್	ಹೆಸರು ಸಂಖ್ಯೆ ಕ್ರ. ಸ. ನೀರಾವರಿ ಮೂಲ	ಮುಂಗಾರು	ಹಿಂಗಾರು	ಬಾಗಾಯ್ತು	ಒಟ್ಟು										
6. ಪಟ್ಟಾ															
ನರಕಾರಿ															
12. ಸಾಗುವಳಿ ಮತ್ತು ಗೇಣಿಯ ವಿವರಗಳು															
ವರ್ಷ ಮತ್ತು ಕಾಲ	ವ್ಯವಸಾಯಗಾರನ ಹೆಸರು ಮತ್ತು ವಾಸಸ್ಥಳ 2	ಸಾಗುವಳಿ ಪದ್ಧತಿ 3	ವಿಸ್ತೀರ್ಣ ಎ ಗುಂ 4	ಗುತ್ತಿಗೆ 5	ವರ್ಗ 6	ವಿಸ್ತೀರ್ಣ ಎ ಗುಂ 7	ಬಾಗಾಯ್ತು 8	ಬೆಳೆಯ ಹೆಸರು 9	ಅದರ 10	ಮಿಶ್ರ 11	ಒಟ್ಟು 12	ಮೂಲ 13	ಉತ್ಪಾದಿ 14	ಮಿಶ್ರಣದ ಹೆಸರು 15	ವಿಸ್ತೀರ್ಣ ಎ ಗುಂ 16
2021-2022 ಮುಂಗಾರು	ನರಕಾರಿ ಅ ಕಾರಿ ಮು ಪದ ಭಾರಸ್ಥ	ಪ್ರಾಂತ್ಯ						*	0.00.00.00	0.00.00.00	0.00.00.00		0.00		
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RTC DIGITALLY SIGNED BY: JAGADEESH KITTURE ON 7/4/2020 5

RTC UniqueNumber: 1632BACE2141638

ಕರ್ನಾಟಕ ಭೂಕಂದಾಯ ನಿಯಮಾವಳಿ 1968 ರ ನಿಯಮ 40, 42, 58 ಮತ್ತು 70

ವಿಸ್ತೀರ್ಣ ಎಕರೆ ಮತ್ತು ಗುಂಟೆಗಳಲ್ಲಿ

ಪಹಣಿಯ ನೈಜತೆಯನ್ನು <http://landrecords.karnataka.gov.in/rtcverification> ಜೆಬ್ ಸೈಟಿನಲ್ಲಿ ಅಥವಾ KA BHOOMI <RTC UniqueNumber> ಟೈಪ್ ಮಾಡಿ 161 ಗೆ ಸಂದೇಶ ಕಳುಹಿಸಿ ಪರಿಶೀಲಿಸಬಹುದುCitizen may register their AADHAAR number and mobile number at www.landrecords.karnataka.gov.in to get SMS alerts about mutations on agricultural lands

*: ಬೆಳೆ ಸಮೀಕ್ಷೆ ಮಾಡಿ ಸ್ವೀಕೃತವಾಗದ ಕಾರಣ, ಬೆಳೆ ಮಾಡಿ ನಮೂದಿಸುವುದಿಲ್ಲ

123

THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT DHARWAD

WRIT APPEAL NO. /2023

IN

WRIT PETITION NO.100462/2022(KLR-LG)

BETWEEN:

The State of Karnataka,
Rep. by its Prl. Secretary,
Revenue Department,
And others.

Appellants

AND

Subhas
S/o. Anna Saheb Pol.

Respondent

**MEMO REG: STATEMENT OF OBJECTIONS OF RESPONDENTS NO. 1 to
4 NOT FILED IN WRIT PETITION NO. 100462/2022.**

The Appellants submit that the Respondents No. 1 to 4 in the aforesaid Writ Petition though appeared have not filed the Statement of Objection to Writ Petition No. 100462/2022.

**PLACE:DHARWAD
DATED: 30.08.2023**

**(V.S. KALASURMATH)
HIGH COURT GOVT. PLEADER
AND
ADVOCATE FOR APPELLANTS/STATE**

124

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2023

IN

WRIT PETITION NO.100462/2022(KLR-LG)

BETWEEN:

The State of Karnataka,
Rep. by its Prl. Secretary,
Revenue Department,
And others.

Appellants

AND

Subhas
S/o. Anna Saheb Pol.

Respondent

MEMO OF APPEARANCE

I have been instructed by the Head of Legal Cell & Ex-officio, Deputy Secretary to Government, Department of Revenue and Food & Civil Supplies, vide **G.O. NO. RD 51 LGL 2021, BENGALURU, DATED: 04.07.2023** appear for the Appellants in the above matter who are Respondents No.1 to 4 in the Writ Petition No. 100462/2022. This Hon'ble Court may therefore be pleased to enter my appearance for the said Appellants.

Place:Dharwad
Dated:30.08.2023

(V.S.KALASURMATH)
HIGH COURT GOVT. PLEADER
AND
ADVOCATE FOR APPELLANTS/STATE
ROLL NO. 965/2002

Address for Service
Government Advocate
Advocate General's Office,
Dharwad.

IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT DHARWAD

PRESENTATION FORM

WRIT APPEAL NO.....of 2023

District: Belagavi

PRESENTED WITH COURT FEE LABELS AS FOLLOWS

Sl. NO.	Particulars	Court fee affixed on the papers	
		Rs.	P.
1.	On Memorandum of Appeal/Petition Application ...		
2.	On the certified copies of judgment and decree ...		
3.	Memo of Appearance ...		
4.	I.A. No.1/2023 for Dispensation of production of English Translation Copy.	20	00
5.			
6.			
7.	 Total ...	20	00

Number of copies furnished 2 Sets

Advocate for Petitioner/ Respondent Appellant

Clerk

Office of the Advocate-General
For Karnataka, Dharwad

Received Court fee and Stamp
Labels as above

Dharwad

Receiving Clerk

Dated:30.08.2023

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2023

IN

WRIT PETITION NO.100462/2022(KLR-LG)

BETWEEN:

The State of Karnataka,
Rep. by its Prl. Secretary,
Revenue Department,
And others.

Appellants

AND

Subhas
S/o. Anna Saheb Pol.

Respondent

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SL NO	PARTICULARS	PAGE NOS.
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2.	Verifying Affidavit	127

Place: Dharwad
Dated: 30.08.2023

(V.S.KALASURMATH)
HIGH COURT GOVT. PLEADER
AND
ADVOCATE FOR APPELLANTS/STATE

Vs/

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2023

IN

WRIT PETITION NO.100462/2022(KLR-LG)

BETWEEN:

The State of Karnataka,
Rep. by its Prl. Secretary,
Revenue Department,
And others.

Appellants

AND

Subhas
S/o. Anna Saheb Pol.

Respondent

**APPLICATION UNDER SECTION 151 OF THE
CIVIL PROCEDURE CODE**

The Appellants named above most respectfully submitted as under:

1. The Appellants are challenging the order dated 24.02.2023 passed by Learned Single Judge in W.P.No.100462/2022 the appellants prays that the Memorandum of appeal filed may please be read as part and parcel of this application.
2. It is respectfully submitted that, in the above Appeal the Appellants have produced a copy of Writ Petition along with Annexures- A to F where in Annexure - C, E, F, F1 & F2 are quite legible and readable. Hence, the production of typed copies of above said Annexure may kindly be dispensed with for 8 weeks.

WHEREFORE, the appellants humbly pray that this Hon'ble Court be pleased to dispense with the production of,

Typed Copies of **Annexure - C, E, F, F1 & F2.**

In the above appeal in the interest of justice and equity.

PLACE:DHARWAD
DATED:30.08.2023

(V.S.KALASURMATH)
HIGH COURT GOVT. PLEADER
AND
ADVOCATE FOR APPELLANTS/STATE

(Vs/300823)

THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT DHARWAD

WRIT APPEAL NO. /2023

IN

WRIT PETITION NO.100462/2022(KLR-LG)

BETWEEN:

The State of Karnataka,
Rep. by its Prl. Secretary,
Revenue Department,
And others.

Appellants

AND

Subhas
S/o. Anna Saheb Pol

Respondent

VERIFYING AFFIDAVIT

I, Suresh Ramu Munje aged about 38 years presently working as the Tahasildar, Raibag Taluk, Belagavi District, today at Dharwad, do hereby solemnly affirm and state on oath as follows:

1. In the above Appeal, I am the Appellant No.4 and I have acquainted with the facts of the case from the available records. Hence I am authorized to swear to this Affidavit myself and on behalf of Appellant Nos.1 to 3.

2. The Statement made in paragraphs 1 & 2 of the **Application for Dispensation** accompanying this affidavit are true to the best of my knowledge.

Place: Dharwad.

DATED: 28.08.2023

NO OF CORRECTION

NOTARY

Identified by:

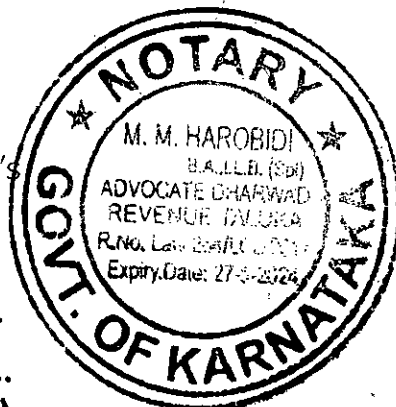
Assistant
O/o Advocate General's
Dharwad.

DEPONENT

Nutrial Register.....

Sl. No. 20591

NOTARY



Sworn Before Me

NOTARY
M. M. HAROBIDI,
B.A., LL.B. (SP)
Advocate & Notary
Sengelli Rayanna Nagar, Dharwad

28 AUG 2023



IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT DHARWAD

PRESENTATION FORM

WRIT APPEAL NO.....of 2023

District:Belagavi

PRESENTED WITH COURT FEE LABELS AS FOLLOWS

Sl. NO.	Particulars	Court fee affixed on the papers	
		Rs.	P.
1.	On Memorandum of Appeal/Petition Application ...		
2.	On the certified copies of judgment and decree ...		
3.	Memo of Appearance ...	20	00
4.	I.A. No.2/2023 for Condonation of Delay. ...		
5.			
6.	 Total ...	20	00
7.			

Number of copies furnished 2 Sets

Advocate for Petitioner/ Respondent Appellant

Clerk
Office of the Advocate-General
For Karnataka, Dharwad

Received Court fee and Stamp
Labels as above

Dharwad

Receiving Clerk

Dated:30.08.2023

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2023

IN

WRIT PETITION NO.100462/2022(KLR-LG)

BETWEEN:

The State of Karnataka,
Rep. by its Prl. Secretary,
Revenue Department,
And others.

Appellants

AND

Subhas
S/o. Anna Saheb Pol.

Respondent

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SL NO	PARTICULARS	PAGE NOs.
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2.	Verifying Affidavit	131

Place:Dharwad
Dated: 30.08.2023

(V.S.KALASURMATH)
HIGH COURT GOVT. PLEADER
AND
ADVOCATE FOR APPELLANTS/STATE

Vs/30082023.

128

**IN THE HIGH COURT OF KARNATAKA DHARWAD
BENCHAT DHARWAD**

I.A. No. _____/2023

(FOR CONDONATION OF DELAY)

IN

WRIT APPEAL NO. _____/2023

IN

W.P.NO.100462 /2022 (KLR-LG)

BETWEEN:

1. The State of Karnataka,
To the Department of Revenue,
Land Grant-3,
Vidhana Soudha,
Bengaluru-560001,
Represented by its Principal Secretary,
2. The Deputy Commissioner,
Belagavi District Belagavi-590001.
3. The Assistant Commissioner,
Chikodi Sub-Division,
Chikodi-591201,
Chikodi Taluka, Belagavi District.
4. The Tahasildar,
Raibag Taluk Raibag-591317,
Belagavi District.

APPELLANTS

AND:

Subhas S/o Anna Saheb Pol
Aged about : 37 years,

OCC: Ex-Servicemen,
R/o. Near-Bus Stand,
Chinchali-591217,
Raibag Taluk,
Belagavi District.

RESPONDENT

APPLICATION UNDER SECTION 5 OF LIMITATION ACT

The above named Appellant most respectfully submit as follows;

1. The above Appeal is filed by the Appellants/state against the Order dated 24.02.2023 passed by the learned Single Judge in W.P.No.100426/2022 (KLR-LG).

2. It is submitted that, in the above cited cased, pursuant to the Order passed by the learned Single Judge, the Government Advocate had opined that the present case is a fit case wherein the Order of the learned Single Judge has to be questioned before the Division Bench of this Hon'ble Court in an Appeal.

3. After receiving the letter and opinion from the learned Government Advocate, the file was sent to the Head of the Legal Cell, Revenue Department, M.S. Building, Bengaluru. The Head of the Legal Cell Department subsequently has given an opinion that the Order under challenge has to be questioned in an Appeal. Subsequently thereof, the file sent to the Head of

the Legal Cell and Ex-officio, Deputy Secretary to Government, Department of Revenue and food and Civil supplies to obtain an Order to enable the Government to challenge the order dated 24.02.2023 passed in W.P.No.100426/2022 by way of filing an Appeal. Since all the concerned officers are situated in Bengaluru, much time was lost in postal communications to obtain an Order to present the Appeal. In this process, some delay has occurred in the present case.

4. It is submitted that, the delay in filing the present appeal is not intentional but due to the reasons stated above.

5. It is submitted that, if the accompanying application is not allowed, the Appellants will be put to untold hardship and on the contrary, if the accompanying application is allowed, the same will not cause any prejudice to the Respondents.

WHEREFORE, it is prayed that this Hon'ble Court be pleased to allow the application for condonation of delay and condone the delay of _____ days in filing the above appeal in the interest of justice and equity.

Place: Dharwad
Dated: 08.2023.

(V. S. KALASURMATH)
HIGH COURT GOVERNMENT PLEADER &
ADV. FOR RESPONDENTS-STATE

131

THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT DHARWAD

WRIT APPEAL NO.

/2023

IN

WRIT PETITION NO.100462/2022(KLR-LG)

BETWEEN:

The State of Karnataka,
Rep. by its Prl. Secretary,
Revenue Department,
And others.

Appellants

AND

Subhas
S/o. Anna Saheb Pol

Respondent

VERIFYING AFFIDAVIT

I, Suresh Ramu Munje aged about 38 years presently working as the Tahasildar, Raibag Taluk, Belagavi District, today at Dharwad, do hereby solemnly affirm and state on oath as follows:

1. In the above Appeal, I am the Appellant No.4 and I have acquainted with the facts of the case from the available records. Hence I am authorized to swear to this Affidavit myself and on behalf of Appellant Nos.1 to 3.

2. The Statement made in paragraphs 1 to 3 of the **Application for Condonation Of Delay** accompanying this affidavit are true to the best of my knowledge.

Place: Dharwad
DATED: 28.08.2023

(Signature)
NO OF CORRECTION
(Signature)
NOTARY

(Signature)
DEPONENT

Identified by:

(Signature)
Assistant
O/o Advocate General's
Dharwad:

Nutrial Register.....*XIV*

Sl. No.....*20597*

(Signature)
NOTARY

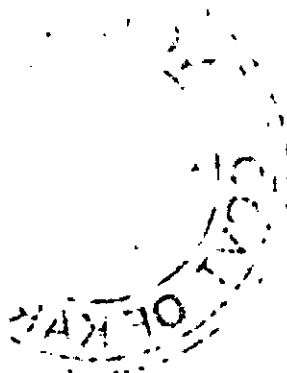


Sworn Before Me

(Signature)
NOTARY
M. M. HAROBIDI,
B.A., LL.B. (Spl)
Advocate & Notary
Sangoli Rayanna Nagar, Dharwad

28 AUG 2023

THE
OFFICE OF THE
ATTORNEY GENERAL
STATE OF NEW YORK
ALBANY



IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT DHARWAD

PRESENTATION FORM

WRIT APPEAL NO.....of 2023

District: Belagavi

PRESENTED WITH COURT FEE LABELS AS FOLLOWS

Sl. NO.	Particulars	Court fee affixed on the papers	
		Rs.	P.
1.	On Memorandum of Appeal/Petition Application ...		
2.	On the certified copies of judgment and decree ...		
3.	Memo of Appearance ...		
4.	I.A. No.3/2023 for Stay: ...	20	00
5.			
6.	 Total ...	20	00
7.			

Number of copies furnished 2 Sets

Advocate for Petitioner/ Respondent Appellant

Clerk
Office of the Advocate-General
For Karnataka, Dharwad

Received Court fee and Stamp
Labels as above

Dharwad

Receiving Clerk

Dated:30.08.2023

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2023

IN

WRIT PETITION NO.100462/2022(KLR-LG)

BETWEEN:

The State of Karnataka,
Rep. by its Prl. Secretary,
Revenue Department,
And others.

Appellants

AND

Subhas
S/o. Anna Saheb Pol.

Respondent

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SL NO	PARTICULARS	PAGE NOs.
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2.	Verifying Affidavit	134

Place:Dharwad
Dated:30.08.2023

(V.S.KALASURMATH)
HIGH COURT GOVT. PLEADER
AND
ADVOCATE FOR APPELLANTS/STATE

Vs/300823

381 132

**IN THE HIGH COURT OF KARNATAKA DHARWAD
BENCH AT DHARWAD**

I.A. No. _____/2023

(FOR STAY)

IN

WRIT APPEAL NO. _____/2023

IN

W.P.NO.100462 / 2022 (KLR-LG)

BETWEEN:

The State of Karnataka
and others.

APPELLANTS

AND:

Subhas S/o Anna Saheb Pol.

RESPONDENT

**APPLICATION UNDER ORDER XLI RULE 5 READ WITH
SECTION 151 OF CIVIL PROCEDURE CODE**

The above named Appellant most respectfully submit as follows:

1. It is submitted that the above appeal is filed by the Appellant/state challenging the order dated 24.02.2023 passed

by the learned Single Judge in W.P. No.100462/2022 (KLR-LG)
by the learned Single Judge.

2. It is submitted that for the reasons stated in the Memorandum of Writ Appeal (which may kindly be read as part and parcel of this application, in order to avoid repetition), the order of the learned Single Judge impugned herein is unsustainable and liable to be set-aside by this Hon'ble Court. Hence this Application for Stay. If the interim order of Stay is not granted, the Respondents are likely to file Contempt Petition and seek for enforcement of the order under challenge. Under those circumstances, the Appellants will be put to untold hardship. On the other hand, if the interim order is granted, none will be put to any hardship.

WHEREFORE, it is prayed that this Hon'ble Court be pleased to grant an interim order of stay of the order dated 24.02.2023 passed by the learned Single Judge in W.P. No.100462/2022 (KLR-LG) and all further proceedings pursuant thereto, during the pendency of the above Appeal, in the interest of justice and equity.

Place: Dharwad
Dated: 30.08.2023

(V. S. KALASURMATH)
HIGH COURT GOVERNMENT PLEADER &
ADV. FOR RESPONDENTS-STATE

ASK/26823

134

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO.

/2023

IN

WRIT PETITION NO.100462/2022(KLR-LG)

BETWEEN:

The State of Karnataka,
Rep. by its Pri. Secretary,
Revenue Department,
And others.

Appellants

AND

Sri Subhas
S/o. Annapurna Saheb Pol

Respondent

VERIFYING AFFIDAVIT

I, Suresh Ramu Munje aged about 38 years presently working as the Tahasildar, Raibag Taluk, Belagavi District, today at Dharwad, do hereby solemnly affirm and state on oath as follows:

1. In the above Appeal, I am the Appellant No.4 and I have acquainted with the facts of the case from the available records. Hence I am authorized to swear to this Affidavit myself and on behalf of Appellant Nos.1 to 3.

2. The Statement made in paragraphs 1 to 3 of the **Application for Stay** accompanying this affidavit are true to the best of my knowledge.

Place: Dharwad
DATED: 28.8.2023

Free copy 3
NO OF CORRECTION
Majority
NOTARY

Identified by:

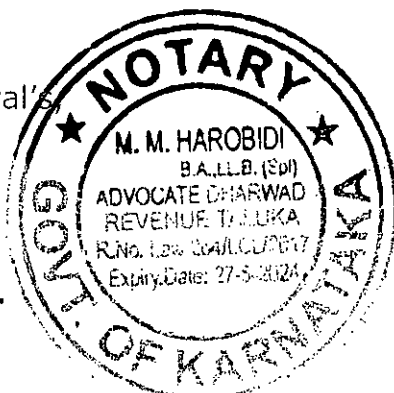
Assistant
O/o Advocate General's
Dharwad.

[Signature]
DEPONENT

Notarial Register.....

Sl. No. 20590

[Signature]
NOTARY

**Sworn Before Me***[Signature]*

NOTARY

M. M. HAROBIDI,
B.A., LL.B. (3pl)

Advocate & Notary
Sangolli Rayanna Nagar, Dharwad

28 AUG 2023

1940